

1 IN THE CIRCUIT COURT FOR THE THIRTEENTH JUDICIAL CIRCUIT
2 IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
3 FAMILY LAW DIVISION

4 CASE NO.: 24-DR-001150
5 DIVISION: D

6 SARAH HANSON,
7 Petitioner,

8 and

9 CHRISTOPHER HANSON,
10 Respondent.

11 COURT PROCEEDING
12 Tuesday, April 22, 2025
13 4:34 p.m. - 5:36 p.m.

14 HONORABLE KELLY AYERS
15 800 East Twiggs Street
16 Tampa, Florida 33602

17 REPORTED BY:

18 Nika M. Priestley, Notary Public

19 State of Florida

20 STENOGRAPHICALLY REPORTED

21 COMPUTER-AIDED TRANSCRIPTION

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17 I N D E X

18		PAGE
19	COURT PROCEEDING COMMENCED	3
20	WITNESS: SCOTT DAVIS	54
21	REPORTER'S CERTIFICATE	61

1 (WHEREUPON, the court proceeding commenced.)

2 THE COURT: All right. Madam Court Reporter,
3 we are here on Hanson v. Hanson, 24-DR-1150. We are
4 here for an order to show cause. Present in the
5 courtroom we have Mrs. Hanson's counsel, Mr. Scott
6 Davis, and we also have Mr. Hanson representing
7 himself. And I will tell you that I did amend the
8 order to show cause. I believe it was just to
9 change the date. That is Docket 141, which is the
10 amended order to show cause for why this Court
11 should not limit communications between the parties,
12 limit communications between the Court and the
13 parties, and an order setting hearing. Mr. Davis
14 filed a response by counsel. It was filed with
15 respect to my original order to show cause. It is
16 Docket 135. And Mr. Davis, you stand by that still
17 being your response to the amended, correct, sir?

18 MR. DAVIS: I do, Your Honor.

19 THE COURT: And Mr. Hanson, his response to
20 court order to show cause, which is Docket 137, and
21 it's the same issue, Mr. Hanson. Yours was filed a
22 little bit before, but we all agree it still goes to
23 amended.

24 MR. HANSON: Yes, Your Honor.

25 THE COURT: Okay. Perfect. I guess since it's

1 my order to show cause I will actually begin.

2 Ms. Priestley, can you still hear me?

3 THE COURT REPORTER: Yes, Your Honor.

4 THE COURT: I just want to make sure I'm
5 speaking loud enough. This Court set this order to
6 show cause because of this numerous communications
7 that my judicial assistant receives on almost a
8 daily basis and there was some back and forth. I do
9 believe that has subsided. I do know, Mr. Hanson,
10 you reached out to her and sent her a long one
11 recently, but since then things have gotten better
12 and things had slowed down before whatever the last
13 one you sent her. And she did concur, once we did
14 the order to show cause, things did lighten up a
15 little bit. I apologize. Do you have a motion,
16 Mr. Davis, with respect to communication? I think
17 you mentioned it at one time.

18 MR. DAVIS: I have a half prepared motion at
19 the time the Court entered an order to show cause,
20 but I would have asked for it, if I filed it, to
21 limit in some way communications from Mr. Hanson to
22 me or basically communications with the plaintiff.
23 I felt that the order to show cause appropriately
24 addressed that issue and essentially abandoned my
25 preparation of the motion.

1 THE COURT: All right. Well, let me ask you
2 this. Before we were able to have this hearing we
3 kind of got into this posture of -- I guess from the
4 last order that I sent that because we were just
5 having trouble keeping track of everything that was
6 being requested of us.

7 So Mr. Davis, you filed on 4/17 a compliance of
8 paragraph 6 of Husband's Request For Clarification
9 Order in which we stated that everyone needs to
10 request it through a formal filing. So this was
11 very helpful because it was just very simple and Dee
12 Dee was actually able to go pull the motions and
13 attach them. So they're all ready for me to review.

14 Mr. Hanson, I did ask her before we came in
15 here and she said you have not filed any such
16 request yet, but no hurry. I know you still have
17 some things you want to have heard. So my
18 suggestion was or we can go forward with the
19 hearing, since this worked well for me, I was
20 thinking maybe we could always just do husband's
21 request for, wife's request for, just a simple, one
22 page what you want to have heard and the docket
23 number so we can reference it. And that would be
24 the easiest way for Dee Dee to print them. In fact,
25 Mr. Hanson, this right here are all the motions that

1 we think you need to have heard and we're just
2 waiting for you to give us the list and then I'll
3 have Dee Dee attach them to your list and provide
4 them to me just as I have Mr. Davis' so that I can
5 hear them all. I just didn't want to print them
6 twice while holding them for you. Would you have
7 any objections to -- I don't want you to do a motion
8 because I have to rule on it. Each time you want to
9 have something set or a request of the Court, you
10 can file a quick request and provide Dee Dee with a
11 copy.

12 MR. DAVIS: Yes, ma'am.

13 THE COURT: Would that work for you,
14 Mr. Hanson, or would you prefer to have free reign?

15 MR. HANSON: I'm sorry, Your Honor. I don't
16 know that I understand exactly what you're asking
17 and I did file something. I forgot to send a
18 courtesy copy. Do you want me to do that now?

19 THE COURT: Let me look real quick.

20 MR. DAVIS: I believe it was yesterday.

21 THE COURT: I tried to look before I came.

22 MR. HANSON: I think it's on the docket now.

23 THE COURT: Yes, it is, and I think I looked
24 last night. So I apologize.

25 MR. HANSON: Do you want one?

1 THE COURT: No. I got it now. Let me just
2 make sure. Okay. So paragraph 7 is where you give
3 me each motion and the docket number.

4 MR. HANSON: I believe so.

5 THE COURT: And that's another request on the
6 top.

7 MR. HANSON: The top reference is motions that
8 were noticed for April 3rd.

9 THE COURT: April 4th. Yeah. It was 4/4 that
10 we were here.

11 MR. HANSON: I'm sorry.

12 THE COURT: It was 4/4. It was easier to
13 remember. I will print this for you. I see it's
14 22 pages.

15 MR. HANSON: It's an attachment, Your Honor, I
16 believe --

17 THE COURT: Communications between you and Dee
18 Dee?

19 MR. HANSON: I don't remember exactly. I'm
20 sorry.

21 THE COURT: Yeah. It looks like it's between
22 you and Dee Dee.

23 MR. HANSON: Yes. I requested some hearings,
24 but I didn't do it in the exact format that you had
25 requested before the order. So I just included that

1 email. I referenced it in the motion, I believe.

2 THE COURT: Okay. So what you did in paragraph
3 7 is perfect what I need just because it's easy.
4 Like I said, hopefully, I'm going to print this.
5 She's got them already printed because she kind of
6 knew what you wanted. Just to let you know too, I
7 even attempted to retrace the docket to see if I
8 could figure it out. It's too voluminous for me to
9 do that. It's just much easier because each of you
10 have your hands wrapped around exactly what you need
11 for me.

12 This is perfect. I'll have Dee Dee attach the
13 motions. Each time I get a request from you guys
14 each week, I'll look at what's been requested of me
15 and give you hearing time. I just go over the list
16 Mr. Hanson and I see -- I think you said you're
17 asking me for all day; is that right?

18 MR. HANSON: Yeah. I don't know that I did a
19 specific time request looking back on it. I don't
20 think that I did.

21 THE COURT: No. It says one day. You were
22 just trying to tell me. Just to let you know the
23 reason I'm going to have to do it is because the
24 time on my docket is so tight. I'm going to have to
25 piecemeal it because when we did that four-hour

1 hearing with the eight motions, we didn't get very
2 far. I want to make sure that we hone in. Like if
3 we're doing discovery motions, we do them all
4 together and I set the appropriate amount of time
5 because we should have gotten through all of those
6 eight motions, but we didn't. So I'm just going to
7 have to somehow hone in so we can get through this
8 as easily as we can.

9 With that being said, we can continue to have
10 this hearing on the order to show, but if everyone
11 -- it sounds like if you stipulate, Mr. Hanson, that
12 you sending me this request works well for you, you
13 said it worked well for you?

14 MR. DAVIS: Yes, ma'am.

15 THE COURT: That will work well for Dee Dee.
16 We can go forward that way.

17 MR. HANSON: I would still like to have the
18 hearings in terms of communications with Mr. Davis.

19 THE COURT: Okay. All right. So as far as
20 communications with the Court, we're all in
21 agreement that we'll file a request, send a copy to
22 Dee Dee, Dee Dee will print the motions for you
23 after you give us the docket numbers, and she will
24 put it in my Hanson To Be Set folder that I have
25 right here and I will do -- unless I'm on vacation,

1 which I have none planned, I will review your
2 requests on at least a weekly basis and have her
3 send updates. Okay. All right. And I would like
4 to limit that you have one request -- no more than
5 one request a day. Doesn't mean you can't put as
6 many as you want on there, but just one email a day
7 to Dee Dee, please. You won't believe how many
8 emails she gets.

9 MR. HANSON: Your Honor, do you want me to file
10 an updated filing with a time request? I don't
11 think I did a time request.

12 THE COURT: Oh, I can figure out the time.

13 MR. HANSON: Okay.

14 THE COURT: What I'm going to do is go through
15 and group them together by subject matter and once I
16 do, I will say this is how much time I think and
17 when Dee Dee sends that back to you, you are free to
18 say why you think you need more time. I will just
19 tell you getting a half a day on my calendar is like
20 very hard. Like I have a waiting list for half day
21 trials and I have a waiting list for full day
22 trials. That's why we're going to have to break
23 this up. Me giving you four hours and we weren't
24 dispositive of all the motions, I'm going to have to
25 work a little bit harder to make sure we manage our

1 time and we're able to get done what we need to get
2 done.

3 As far as the order to show cause with respect
4 to Dee Dee, you will be able to file one request for
5 hearings per day and send it to Dee Dee. She will
6 print. You don't have to attach your motions unless
7 they're not on the docket and you feel like you need
8 to. She will print the motions, put them in my file
9 folder, and I will get back with you hopefully on a
10 weekly basis.

11 Now, Mr. Davis, what are you requesting with
12 respect to communications between your office and
13 Mr. Hanson?

14 MR. DAVIS: I'd also like that to be limited.
15 It started out with demands that I explain things
16 and that's just not how the system works.
17 Mr. Hanson got pretty heated in some of the
18 communications and making accusations. I don't want
19 to go through them unless the Court wants to because
20 I don't think it serves a legitimate purpose, but I
21 don't think there's much -- opposing attorneys and I
22 don't ask to communicate terribly often unless trial
23 is set or something.

24 THE COURT: Settle something, is that what you
25 said?

1 MR. DAVIS: Unless we're trying to settle an
2 issue or trial or something, we don't communicate to
3 schedule things. We communicate if there's
4 something urgent relating to a minor child. We
5 communicate about potential stipulations if we're
6 going to a trial or hearing that's relating to
7 exhibits, et cetera. It's not that we have a lot of
8 day-to-day communications with opposing attorneys
9 unless it's called for.

10 THE COURT: All right. So what's your
11 suggestion on your limitations? What do you propose
12 and how?

13 MR. DAVIS: Well, definitely has got to be by
14 email. I will not speak to Mr. Hanson on the
15 telephone because I am concerned about false
16 allegations being made about what is said. So it
17 has to be in writing.

18 THE COURT: How often do you hear from
19 Mr. Hanson.

20 MR. DAVIS: A lot less than I used to.

21 THE COURT: That came from my office and
22 everybody seemed to have calm down a little bit.

23 MR. DAVIS: Yes, ma'am.

24 THE COURT: So you're leaving it to my
25 discretion. Mr. Hanson, what are you proposing for

1 communications between you and Mr. Davis?

2 MR. HANSON: Your Honor, he hasn't filed an
3 single example of an unreasonable email that I sent.
4 He makes these conclusions like I'm being
5 unreasonable with demands and that I'm demanding he
6 explain things. I'm making false allegations. From
7 Day 1 I tried to talk to Mr. Davis to get us on the
8 same page because it's a simple issue. The only
9 issue is discovery and obstruction to discovery.
10 Those are the only two issues in the case. And if
11 you look closely at the timeline and how things
12 occurred, it's impossible to be anything else. And
13 without examples of what I'm doing that is
14 unreasonable, I don't understand how the Court could
15 limit anything. He's not offering any evidence.
16 It's just conclusions. If you look at the
17 correspondence, it tells a very clear story. The
18 first communication I had with Mr. Davis was
19 November 25th.

20 THE COURT: November 25th, 2024.

21 MR. HANSON: Yes. Docket No. 70. If you'd
22 like to look at it.

23 THE COURT: 7-0.

24 MR. HANSON: Yes. It's a long email. I won't
25 deny that it is a long email because these are

1 important issues to me that I'm trying to get behind
2 me, Your Honor. I'm trying to do that in good faith
3 in every way I can. There's only one way through
4 this and that's getting past all this obstruction,
5 getting some answers, and again, I just want to
6 resolve it and get it behind it. But I've prayed on
7 whether I could live without an answer to this for a
8 long time a year ago and I cannot. I can't coparent
9 with Sarah without an answer to this.

10 THE COURT: Answer to what question?

11 MR. HANSON: The discovery. The mandatory
12 disclosures.

13 THE COURT: The Chase subpoenas.

14 MR. HANSON: The Chase subpoenas, Request to
15 Produce that are outstanding for information. It's
16 11 months to day since I filed something on May 22nd
17 that clearly laid out my objective to efficiently
18 get through this. Get the discovery. It's been
19 ugly. I'm not trying to make any of the ugly
20 allegations or prolong this. I'm suffering through
21 that as attempts to obstruct my right to this
22 discovery.

23 If you look at the timeline, Your Honor, it's
24 very clear that, you know, he filed four motions the
25 day that my attorney is withdrawing over my

1 objection, where during the hearing I explained that
2 I've been up all night trying to get an objection
3 out to Ms. Hodz withdrawing. He hadn't filed a
4 motion in the entire seven months he'd been on the
5 case, but suddenly I'm losing my attorney and he
6 files four motions. And I'm sorry, Your Honor. I'm
7 getting beyond the email correspondence here that I
8 know that we're here on.

9 If you just look at the first paragraph of what
10 I sent to him on November 25th, the third line down
11 towards the second half, it says, "I'm sending this
12 in the spirit of the cooperation and hope that you
13 will review and consider it carefully with
14 Ms. Hanson." First paragraph of the section under
15 "Current status and objectives", "I'm hoping this
16 email provides an opportunity to reset and work
17 cooperatively towards a resolution."

18 So if you read the whole email, it explains the
19 timeline and some of my concerns with the discovery.
20 For example, the four months late on the stipulation
21 he reached on a singular issue in the matter from my
22 May filing and from communications with Ms. Hanson
23 before we got attorneys. Everybody knew that
24 discovery was the only issue. My wanting discovery
25 into her financial information that she didn't

1 provide me. And since Day 1 that's been the
2 objective.

3 It's my position that Mr. Davis's entire
4 strategy in this case is a direct violation of Rule
5 4-3.4 of professional conduct that prohibits a
6 lawyer from unlawfully obstructing other party's
7 access to evidence by unlawfully altering,
8 destroying, or concealing a document or other
9 material having potential evidentiary value.

10 Part D of that same rule says in pretrial
11 procedure making frivolous discovery requests or
12 failure to make reasonably diligent effort to comply
13 with a legally proper discovery request by an
14 opposing party. So there's very serious things
15 going on here, Your Honor. There's concealment of
16 evidence. You know, I don't understand how I don't
17 have access to at least what Mrs. Hanson had access
18 to when I provided disclosures at the time of the
19 postmarital agreement. She did not.

20 I'm willing to rip up the postnuptial
21 agreement, even though it looks like, if they're
22 being honest, Mrs. Hanson would end up with more
23 money. That doesn't make any logical sense, but I
24 don't really know what I'm supposed to think here
25 and these emails, they are professional, cordial

1 attempts to get an understanding of what's
2 happening.

3 Is there an explanation for four-month delay in
4 the single issue that's keeping me up at night? No
5 explanation. The Court's never asked him for an
6 explanation. I've asked for it in numerous
7 pleadings and numerous hearings. He's gotten away
8 with not even providing an explanation for being
9 four months late on a stipulated discovery
10 obligation on the singular issue in the case. And
11 then there's a whole long pattern of trickling out
12 information and put things off and he hasn't had to
13 answer for any of that. And I'm suffering because
14 of it, Your Honor, and it's been 11 months.

15 I'm in it as long as it takes, but I didn't ask
16 for any of this. I didn't ask to give you a hard
17 time, Judge. I didn't ask to give Sarah a hard
18 time. Everything I filed has been trying to get us
19 through this for my kids and they're using my
20 children as pawns. That's very, very clear if you
21 look at the evidence in this case. So all things
22 considered, I've been incredibly cordial and
23 professional with Mr. Davis. I would urge you to
24 look at all the email correspondence and consider
25 the fact he hasn't filed one email I've sent. He's

1 got all this evidence that I'm so horrible with
2 emails with demands and dishonesty and all that,
3 file something. He doesn't have evidence. He wants
4 you to go along with what he's said even though it's
5 completely inconsistent with everything in the case.

6 Your Honor, I'm going to try my best to get us
7 through this. I won't change my mind about getting
8 answers to this discovery, but I just hope that the
9 Court will -- now, that there's a motion to void the
10 postmarital agreement -- I think -- I just know
11 there's no way through this other than the
12 discovery.

13 THE COURT: But isn't right now -- just make
14 sure I'm correct. The discovery -- they wouldn't
15 give you the discovery because they believed you
16 weren't legally entitled to it. And then it came in
17 front of me and I concurred with it just based on
18 the two agreements. And that's when you came in
19 front of me a few times and I think I did "wink
20 wink", you got to do something before I consider it
21 and then you finally said oh, okay. I will try to
22 set aside the postnuptial because that does change
23 the trajectory of the discovery.

24 Right now they're not giving you the discovery
25 because there's a current court order in place that

1 they don't have to until we hear your motion to set
2 aside. Am I correct on that?

3 MR. HANSON: Your Honor --

4 THE COURT: Are they violating any of my orders
5 right now with respect to discovery? I think I
6 ruled on that. You have these agreements. That's
7 the only way I can limit it. When you have a
8 prejudgment and a post-judgment agreement, the whole
9 reason you do is that is to limit discovery. Now
10 that you've asked to throw one of those out because
11 you think that was entered into with you not knowing
12 everything, correct?

13 MR. HANSON: I know it was. I know it was.

14 THE COURT: Okay. That's something I now need
15 to rule on and once I rule on that, it will be
16 whether you're entitled to discovery.

17 MR. HANSON: Your Honor, how could you even
18 consider that motion without allowing me the
19 opportunity to have some discovery?

20 THE COURT: Absolutely.

21 MR. HANSON: It was supposed to be addressed on
22 April 3rd.

23 THE COURT: April 4th.

24 MR. HANSON: It's really in my head, the 3rd.

25 THE COURT: I just want it to be on my record

1 right.

2 MR. HANSON: I've had the 3rd in my mind. I'll
3 try to get it right. I apologize, Judge. I forgot.

4 THE COURT: So you were saying that we were
5 supposed to address it on April 4th, but we didn't
6 get to it.

7 MR. HANSON: At the end of the hearing we
8 started to address it. I know that is going to
9 resolve the other issues. That will ease the
10 tension. That's really I think the end then. All I
11 want to do is resolve issues. I don't think
12 Mrs. Hanson really wants to change the custody. The
13 kids are doing incredible. I'm a very good father.
14 There's never been a complaint about anything
15 associated with the kids and me. They have to
16 suffer through these motions and allegations about
17 my psychological conditions and then they make no
18 effort to get the records. I offered to sign
19 releases to assist them in getting all of my medical
20 records. They're placing that at issue, but like
21 everything else they're burying their hands in the
22 sand to the truth and hoping that the Court will
23 too.

24 THE COURT: You understand right now there's an
25 order that says they don't have to give you

1 discovery? We do need to have a hearing on that on
2 whether you're entitled to discovery and I concur
3 with you that it does -- there will be some
4 discovery you will be entitled to, I would imagine,
5 without prejudging the case, in order for you to
6 determine if the post judgment should be set aside.
7 That's what you're asking and I imagine you would be
8 correct on that.

9 MR. HANSON: When you say post judgment --

10 THE COURT: The agreement.

11 MR. HANSON: The postmarital agreement, which I
12 had no counsel involved, and there's no disclosure.

13 THE COURT: Right.

14 MR. HANSON: Under the case law, I believe
15 that's -- when there's not disclosure, a party is
16 entitled to investigate into what the assets were
17 based upon my reading of the case law. The
18 Fullerton case is one. Fullerton case is one, a
19 recent one, where there was specific language in the
20 postmarital agreement that limited discovery. We
21 don't have anything like that in our case. There's
22 nothing limiting discovery in the postmarital
23 agreement. There's nothing suggesting there's any
24 disclosures. In the Fullerton case, there's
25 something in the postmarital agreement that says no

1 discovery. The Judge still let them have discovery.
2 That was the issue on appeal and the Court said
3 wait, if there's no -- if there's something in the
4 postmarital agreement that says no discovery, that
5 prevails until -- I can't recall what type of
6 hearing it was. There was still possible the person
7 was going to get it. It's just the language
8 prohibited it.

9 In my case when there's nothing that prohibits
10 discovery and there's clear nondisclosure, it's
11 clear evidence to support, logically it doesn't make
12 sense that she's not hiding anything. She's turning
13 down money and fighting for more litigation. I
14 offered her to tear up the postmarital agreement in
15 exchange for waiving discovery. So there's every
16 reason to give me discovery. I've asked for it
17 several times. I don't know the latest time,
18 whether there's an order denying it or not. There's
19 definitely not one after the motion to void the
20 postmarital agreement.

21 THE COURT: It still has to be set a hearing.

22 MR. HANSON: Your Honor, how can you have a
23 meaningful hearing on that motion to set aside that
24 postmarital agreement if you don't allow me to have
25 discovery before that hearing.

1 THE COURT: I concur with you, but we need to
2 have a hearing. Right now there's an order that
3 says you can't. An order that says you can't have
4 the discovery. Now that you have filed a motion to
5 set aside the post judgment, you would have to file
6 another motion now saying now that I filed the
7 motion to set aside the post judgment, am I entitled
8 to this discovery so that I can prove to you that
9 this agreement was entered into in bad faith, on
10 fraud, without proper disclosure. That motion has
11 already been disposed of.

12 Now that you filed a motion asking me to set it
13 aside, we have to have an evidentiary hearing
14 because they have a right to be heard to tell me why
15 I shouldn't allow you to delve into it. And you're
16 going to says, "I need to delve into it, Judge,
17 because that's the only way I can prove to you that
18 this post judgment needs to be set aside."

19 MR. HANSON: Your Honor, it's a new subpoena
20 that was issued after your order denying my right to
21 it.

22 THE COURT: Did you do an objection?

23 MR. DAVIS: Yes.

24 THE COURT: Okay. You can set that.

25 MR. HANSON: Your Honor, after 11 months? Do

1 you have the authority to just say hey, you know
2 what. Let's just move this along for this family.
3 He's filed the motion to void the postnuptial
4 agreement. He's been asking this since Day 1 back
5 in May of 2024. Let's see if maybe doing the one
6 thing I've ever asked the Court to do, other than
7 defending against all the law fare to push you away
8 from all this. Do you have the authority, Your
9 Honor, to say hey --

10 THE COURT: If I say right now I'm going to
11 have a hearing on that objection to subpoena and I'm
12 going to rule against Mrs. Hanson and I'm going to
13 allow the subpoena to be issued, Mr. Davis is going
14 to file an appeal and say it wasn't noticed for
15 hearing today and he didn't have due process and the
16 appellate court is going to reverse me. It has to
17 be set and you have to have notice.

18 MR. HANSON: I literally asked for an emergency
19 hearing on this subject. He filed something -- I'll
20 show you in the docket where it is. He filed
21 something after the motion -- after I filed the
22 subpoena asking the Court to file or to set. I
23 don't know if it was an emergency or expeditious
24 hearing on it.

25 THE COURT: Let me pause for a second because

1 11 months sounds like a long time. I can pretty
2 much guarantee, without looking at the docket -- I'm
3 sorry. At the motion to void the post judgment was
4 not filed 11 months ago.

5 MR. HANSON: No. Getting the financial
6 records.

7 MR. DAVIS: Not even four.

8 THE COURT: But after you filed the motion to
9 set aside the post judgment, you reissued the Chase
10 subpoenas.

11 MR. HANSON: Yes.

12 THE COURT: And then he filed an objection.
13 That's just been a couple of months. You can set
14 those objections. And correct me if I'm wrong, I
15 believe on April 4th the objection to the Chase
16 subpoenas was not something that was noticed for
17 April 4th.

18 MR. HANSON: The reason that you set a case
19 management conference on April 4th was to address
20 whether the subpoena would go out.

21 THE COURT: No. When he files an objection,
22 you have to set a hearing on his objection.

23 MR. HANSON: I understand, Your Honor, but the
24 email correspondence explains the purpose of doing
25 it at the case management conference was to address

1 --

2 THE COURT: That's the whole issue I have the
3 issue with the emails. I don't read them. I'm not
4 allowed to read all of that email stuff. Dee Dee is
5 not even supposed to read it. I do recall her
6 saying Mr. Hanson would like to have a case
7 management off the top of my head. My recollection
8 is you wanted to address setting other hearings.
9 You can't set a CMC to have a motion heard without
10 the motion being properly noticed because the other
11 side has a right to due process to prepare a defense
12 to that.

13 So a hearing on -- with that being said, if you
14 want to do it ore tenusly and Mr. Davis doesn't
15 object, I can add to what you filed yesterday in
16 paragraph 7, would you like me to add to this list
17 that you would also like me to hear the objections
18 to the subpoena, the subpoenas that were supposed to
19 be issued to Chase? Would you like me to add that
20 to your list?

21 MR. HANSON: It's already on there, Your Honor.
22 It's really, really concerning to me the way the
23 Court is going.

24 THE COURT: Hold on. We can't cross over each
25 other. So you knew and asked me for that request

1 that that needed to be done. Otherwise, you
2 wouldn't have requested it of me.

3 MR. HANSON: Your Honor, I feel like no matter
4 what I do or have done, the Court goes with
5 Mr. Davis even though there is a complete lack of
6 evidence for anything he has stated and an abundance
7 of evidence that all it is is law fare and attempts
8 to avoid stuff. If someone is allowed to practice
9 like this, in this day and age for months, without
10 consequences, is horrifying to me. I can't imagine
11 how many families have suffered because of Courts
12 allowing people to act like Mr. Davis has acted in
13 this case.

14 I think maybe my new calling for my career is
15 to help people that are in my position because I
16 couldn't get a lawyer to help me. I couldn't get a
17 Court to help me on why the lawyers went from no
18 problem, we'll get this to this is impossible after
19 conferences with Mr. Davis. Two occasions, two
20 separate cases. I have no answers to why that
21 happened. I essentially can't get attorneys because
22 I think the same thing will probably happen. So if
23 the Court wants to put it off further --

24 THE COURT: Sir, I don't want to, but I know we
25 all remember one of my least favorite classes was

1 rules of civil procedure and there's rules of civil
2 procedure. I have to follow them and if I don't,
3 I'm going to be appealed and reversed. And I sit
4 here right now with one appeal in five years in
5 which I made new case law. It's very important to
6 me to not drag anybody through that. And the other
7 thing they just added, which is so amazing are these
8 motions for rehearing. Now, if I do make a mistake,
9 you guys can bring it to my attention. I can
10 rectify before we file with appellate court. So
11 there's rules of civil procedure.

12 So if you do a notice of sending out a subpoena
13 and they object, you must set an objection hearing.
14 My hands are tied.

15 MR. HANSON: Your Honor --

16 THE COURT: Hold on. Hold on. It's not that I
17 don't want to help your family. Do you think I want
18 to drag this out and keep coming into court every
19 week with the same case?

20 MR. HANSON: I do.

21 THE COURT: You think that's what I want to do?

22 MR. HANSON: I do.

23 THE COURT: Well, I don't.

24 MR. HANSON: I think you want to do anything
25 Mr. Davis wants you to do, Your Honor.

1 THE COURT: Why do you think I have favor with
2 Mr. Davis?

3 MR. HANSON: Your Honor, there's a very long
4 list of things at Docket -- the order denying --it
5 was Docket No. 145.

6 THE COURT: Because Mr. Hanson, as I sit here
7 today, I believe the only substantive ruling that
8 I've made is you can't get your discovery because
9 we've got the two agreements. I don't think I've
10 made any -- I'm getting ready to make a huge ruling
11 from 4/4, but I don't think I've made any rulings
12 since. And I can't tell you how many times I hinted
13 to you, you need to file something, you need to file
14 somebody, and once you did, now you set up the
15 posture for getting another bite at apple on your
16 discovery.

17 Now all we have to do is set the objection to
18 decide. It's because you moved to set aside one of
19 the agreements, are you entitled to that discovery
20 so you can approve -- approve. So you can prove
21 your allegations of fraud from Mrs. Hanson. So we
22 have to do this in a procedural way, sir.

23 MR. HANSON: Your Honor, is there any case law
24 that suggests that motion to void is appropriate or
25 necessary in order to get discovery?

1 THE COURT: So if you -- when you have an
2 agreement in place that's both a prenup and a
3 postnup, we're done. I ratify those and we're done.

4 MR. HANSON: There's no disclosure.

5 THE COURT: No.

6 MR. HANSON: Is the disclosure required before
7 postmarital agreement?

8 THE COURT: That's a legal question. I can't
9 answer.

10 MR. HANSON: It is required and there was no
11 disclosure.

12 THE COURT: That's what you're going to argue.

13 MR. HANSON: I didn't need to file the motion
14 to void. Once there was the argument there wasn't
15 disclosure and there's reason to believe it's going
16 to lead to evidence or relevant evidence.

17 THE COURT: Let me ask a question. How are you
18 to put Mrs. Hanson on notice that you need this
19 discovery because you're going to challenge the
20 postnuptial agreement if you don't file a motion?
21 You just can't come in and say I believe now,
22 because there wasn't any discovery, this isn't
23 binding. So I want you to order discovery. You
24 have to file a motion. They have a right to due
25 process and to be put on notice. You just can't

1 come in. And it's called a fishing expedition.
2 You're not permitted to do that. They have a right
3 to know what they're defending. Now that you teed
4 it up correctly, it's teed up correctly. I agree
5 with you. We need to come in and discuss if
6 discovery is going to happen. I think the thing
7 that is going to be most concerning to you is go
8 ahead and get the objections to the subpoena set.

9 Because I have to tell you, I wrote this down
10 and I've written it down in all my other hearings.
11 Every time you come here and you say -- I just wrote
12 it down. "The most important thing in this case is
13 the discovery. I can't coparent until I receive the
14 discovery."

15 I spent four hours with you on April 4th trying
16 to do what's best for your kids and I asked you so
17 many times and Mr. Davis objected so many times.
18 We're here on the best interest with respect to your
19 children. That's all I'm hearing today and you
20 spent your entire time, sir, talking about the Chase
21 subpoenas. That's not what's most important to me
22 right now. What's most important to me is your kids
23 are safe, sound, and doing well.

24 MR. HANSON: Your Honor, perhaps we can ask the
25 Court or Mr. Davis why he didn't follow the Court's

1 instructions about a summary of the testimony from
2 Ms. Hanson. Why hasn't he reduced any arguments to
3 writing?

4 THE COURT: He didn't. So I'm doing it myself.

5 MR. HANSON: Right. But if the Court asked me
6 to do something and I didn't do it, I don't expect
7 the result to be don't worry about it. That's an
8 example of how you favor Mr. Davis. I'll give you
9 another one if you want to hear that.

10 MR. DAVIS: Mr. Davis, did you send me your
11 arguments?

12 MR. HANSON: It's a summary of her testimony.

13 THE COURT: Sure. Absolutely.

14 MR. HANSON: And summary of the argument
15 because I have no idea what the argument is. All
16 they do is say they want this and then have
17 Ms. Hanson testify about some vague, minor marital
18 stuff. I don't know what the argument is. So what.
19 We had a bad ending to our marriage and that's the
20 basis for the motion. I don't understand.

21 THE COURT: I asked Mr. Davis to summarize it
22 so I could get it done faster based on how heavy my
23 docket is. But when he didn't do it, I actually
24 said to Dee Dee, don't give him a reminder. It will
25 probably be best especially since you believe I

1 favor Mr. Davis that I don't take his argument and I
2 do it from my position. Because if Mr. Davis gives
3 it to me, I can promise you it's going to be a lot
4 harsher on you than what I'm going to do because
5 he's sitting there litigating for his client.

6 When I asked Dee Dee to ask him for a summary
7 of his argument to get you an order as quickly as
8 possible and he didn't comply, I said Dee Dee, don't
9 worry about it. I'll draft the order from scratch.
10 I'll tell you what my other issue is. I have the
11 most fabulous staff attorney who just came to my
12 office today and I just gave her flowers and told
13 her good-bye. She's moving to Harris, Hunt & Derr.
14 So I just lost my staff attorney at the same time
15 all this was going on and she's been helping me with
16 your case.

17 So I'm tasked with sitting at the computer
18 myself typing every single word to do the ruling
19 from the hearing on 4/4. I'm spending my weekends
20 too, which I don't mind. If you want Mr. Davis to
21 sent that to me, I'll be happy to incorporate it,
22 but I'm almost done with the order and I don't need
23 anything from either of you.

24 MR. HANSON: Well, Your Honor, I would like the
25 answers to some of these questions. Why didn't he

1 do the summaries? Can you ask him that?

2 THE COURT: You can't ask him.

3 MR. HANSON: Why wouldn't the Court be curious
4 that he didn't comply with the Court request?

5 THE COURT: I can't be concerned with that
6 every single day. People don't return my phone
7 calls. It's shocking to me.

8 MR. HANSON: Your Honor --

9 THE COURT: I don't get a call back on the
10 phone.

11 MR. HANSON: Can we ask him about the trickle
12 of documents?

13 THE COURT: You can't ask him anything.

14 MR. HANSON: If the Court were interested in
15 helping my family, it would be interested in his
16 conduct and the Court intentionally closes its eyes
17 to his conduct.

18 THE COURT: You can't ask a lawyer a question.

19 MR. HANSON: I said the Court intentionally
20 closes its eyes with respect to his conduct.

21 THE COURT: Have you filed a motion with
22 respect to his conduct? I believe you have.

23 MR. HANSON: Your Honor, my goal is not to go
24 after Mr. Davis even. It's to get a fair result and
25 an efficient result for my kids to get them out of

1 this. I'm shocked by the way the Court handled it.
2 I can't get over it.

3 THE COURT: I'm not the Florida Bar. I don't
4 discipline lawyers.

5 MR. HANSON: Your Honor, I would think as the
6 opposing party, you would have some respect for me
7 to say hey, why are you doing this to him? Why did
8 you wait four months after the stipulated documents?
9 With the amount of different things that happened
10 and then, when I'm talking about it during a hearing
11 and then you say that he's a teddy bear instead of
12 addressing his conduct. You say generally things
13 that are completely inconsistent with the facts of
14 this case and you ignore the facts of this case.

15 THE COURT: I can't ask him any questions. If
16 you have an issue --

17 MR. HANSON: You can't ask the lawyer questions
18 about his conduct?

19 THE COURT: No. He has not done -- the only
20 thing that both of you have acted inappropriately
21 were those emails about going to the baseball field
22 with bats and balls and I called you both in and
23 gave you both a lecture. I don't that I've ever
24 done to be honest with you. I gave both of you a
25 lecture. I was upset that you were the writing the

1 emails and that you were allowing him to get under
2 your skin and you were going back and forth with
3 him. I thought all that was inappropriate. That's
4 conduct that I saw. Mr. Hanson, do not talk.
5 That's conduct I saw and I called you both out on
6 it. All the other conduct that he's done that's
7 horrible is your allegations and your vision. I
8 haven't seen him doing any of it.

9 If you want to file a motion and ask me to look
10 at his conduct and I see that he's been used
11 misconduct, I'm going to call the Florida Bar and
12 report him because that's what the Florida Bar does.
13 I don't do that. If he comes to my courtroom and
14 lies to me, heck, yeah. I'm going to do an order to
15 show cause on why he came and lied to me. He hasn't
16 done anything to me or in these proceedings that
17 give me any indication that he's doing anything
18 wrong. Neither have you.

19 MR. HANSON: So he can do anything he wants to
20 me.

21 MR. DAVIS: Mr. Hanson has filed a grievance
22 and the Florida Bar declined to take any action.

23 MR. HANSON: I'm appealing it to the ACAP, I
24 believe. I'm in the process of drafting that and I
25 need additional documentation. And I'll continue

1 with this process.

2 THE COURT: If he acts unkind to you, that's
3 not what that process does.

4 MR. HANSON: Your Honor, you're the judge and
5 I'm an unrepresented party.

6 THE COURT: -- the client --

7 MR. HANSON: Your Honor, I filed a motion
8 alleging all of these discovery violations and your
9 reaction is I don't really care. I really can't
10 believe --

11 THE COURT: You have to set it for a hearing.

12 MR. HANSON: It's been set for hearing, Your
13 Honor. It's been a set for hearing before. It's
14 been before the Court, but the Court just won't ask
15 Mr. Davis about the conduct. It's shocking.

16 THE COURT: What you're asking me to do, what
17 you're upset about is you still want to know why
18 your two lawyers quit on you, for lack of a better
19 word, after they had a conversation with Mr. Davis.
20 I am not permitted to ask Mr. Davis what he said to
21 Mrs. Hodz and what he said to Ms. Samarkos. Is that
22 who he had?

23 MR. DAVIS: Yes, ma'am.

24 MR. HANSON: Why can't you, Your Honor?

25 THE COURT: Because it's none of my business.

1 MR. HANSON: The Court --

2 THE COURT: What two lawyers talked about is
3 none of my business.

4 MR. HANSON: Even if it affects an
5 unrepresented litigant.

6 THE COURT: No. You were represented.

7 MR. HANSON: Your Honor, she already refused to
8 do any work on the file. She didn't tell me that I
9 had a major pleading that was due, I believe, the
10 day she withdrew. The Court didn't tell me either.

11 THE COURT: What's shocking to me is I have so
12 many lawyers in front of me on a daily basis and if
13 you would tell me to list the three -- I want to use
14 an appropriate word right now. Three women lawyers
15 who come in and take names and no mercy, Vivian Hodz
16 would be at the top of that list. So didn't call
17 him necessarily a teddy bear. I just don't see
18 Vivian Hodz backing down to anyone. Okay.

19 MR. HANSON: I asked her.

20 THE COURT: So what I'm saying --

21 MR. HANSON: When I asked her --

22 THE COURT: Mr. Hanson, we can't talk over each
23 other. So the fact that you're telling me that
24 Mr. Davis called Vivian Hodz, come in and take
25 names, take no prisoners, and intimidated her into

1 quitting, I would find shocking and I can't ask it.
2 It's none of my business.

3 MR. HANSON: Even when I'm objecting to her
4 withdraw?

5 THE COURT: You can't object to her withdraw.
6 The only way you can object to her withdraw is if
7 you -- let me give you an example.

8 MR. HANSON: Your Honor.

9 THE COURT: No, sir. I'm talking. I just had
10 a hearing, an emergency hearing, at 2:00. They were
11 set for trial on Thursday. The lawyer moved to
12 withdraw. First time ever I wouldn't let him
13 withdraw because if he withdraws I have to continue
14 the hearing that's already been continued three
15 times. So I'm making this lawyer litigate a case on
16 Thursday and he wanted to withdraw because he hadn't
17 been paid and I said no. First time I ever said no.
18 That's the only time the rule allows me to say no
19 because they're set for Thursday. I continued it
20 three times and he hasn't been paid. Other than
21 that, I have to let them withdraw. If you recall,
22 Mr. Hanson, when you came in, you said all these
23 horrible things about Ms. Hodz, why you didn't like
24 her.

25 MR. HANSON: I didn't say I didn't like

1 Ms. Hodz. I told you what happened. That she quit
2 on me because of a conversation with Mr. Davis. She
3 said you're going to need to hire the most
4 aggressive male attorney in town if you want to get
5 these records. She didn't have any explanation for
6 why she said it would be straightforward to get
7 them. She put that in writing for me and filed with
8 the Court. Then it suddenly changed to I can't help
9 you. She didn't provide an explanation for that.
10 It was just the conversation with Mr. Davis that
11 went from no problem, I can help you, confirmed in
12 writing, where she was already aware of what was
13 going in the case. Hey, are you sure you're up for
14 this, Ms. Hodz? This is going to be contentious and
15 she said I'll get you taken of. And that was always
16 the attitude up until the conversation and after the
17 conversation, it was I can't help you. So I want to
18 ask the question --

19 THE COURT: Let's suppose you're 100 percent
20 right. Let's say Mr. Davis called up and was a
21 complete you know what. Threatened her, said you
22 don't want to do this, and she's like you know what.
23 I don't want to deal with Mr. Davis. He's a jerk
24 and it's not worth the money. And she said I don't
25 want to be your lawyer. There's nothing against the

1 law on that. He can go be a total jerk to whoever
2 he wants and get them not to be your lawyer and
3 there's nothing I can do it about it. I don't think
4 there's anything the Florida Bar can do about it.

5 MR. HANSON: Your Honor, I know that we're
6 running out of time here. Will the Court ask
7 Mr. Davis why he failed to comply with the Court's
8 request to provide a summary?

9 THE COURT: No.

10 MR. HANSON: Will the Court ask Mr. Davis why
11 he was four months' late in providing discovery?

12 THE COURT: I don't know what you're talking
13 about.

14 MR. HANSON: He agreed to produce discovery by
15 July 28th and despite follow-ups from my attorney at
16 the time, it being the singular issue in the case,
17 four months, nothing and slow trickle started three
18 days before the hearing.

19 MR. DAVIS: May I address the Court on this.

20 THE COURT: Yes.

21 MR. DAVIS: No. 1, this is already been
22 adjudicated. Mr. Hanson, for some reason that I
23 don't understand, and perhaps won't, we were late on
24 our discovery for honestly multiple reasons. We
25 provided a significant amount of discovery a couple

1 days prior to the hearing. I asked the Court to
2 give us additional time, not award fees. The Court
3 disagreed. The Court said nope. I'm going to grant
4 the motion and found that he's entitled to fees.
5 After that we sent our notice of compliance, which
6 was the rest of the discovery. What he argued was
7 Ms. Hodz asked for some retirement records outside
8 the scope of mandatory disclosure. My paralegal
9 communicated with my client. My client said sure
10 and they were sent over outside of the scope.

11 So you have, prior to the hearing, one batch,
12 after the hearing, the compliance batch, that wasn't
13 prior to the hearing, and then the request for extra
14 that's outside the scope and we said sure. Take it.
15 Your Honor, that's what he calls the trickle and
16 it's hardly a trickle and it's hardly a strategy.

17 MR. HANSON: It is.

18 MR. DAVIS: What could I hope to gain, when no
19 hearings were set, by slowing a roll on discovery.
20 It just didn't even make sense. I've never seen a
21 hearing -- I don't think so, in 27 years, where
22 somebody's stalling on discovery has been beneficial
23 to the party who's stalling. All that does is make
24 judges mad. So it wasn't a trickle and he got what
25 he asked for. He even got things he was asked for

1 above and beyond the complaint because Ms. Hodz
2 asked nicely and we said sure.

3 MR. HANSON: Your Honor, that's blatantly
4 untrue and from the first email I sent, you'll see
5 that. There's actually a paragraph entitled -- hold
6 on for a second. It looks like it's page 3. The
7 title of the paragraph is "Eventual and apparent
8 strategic trickle of long overdue discovery
9 documents."

10 MR. DAVIS: That's what he wants to
11 characterize. Just like Ms. Hanson's testimony. He
12 takes his reality and it's the only way he can see
13 things. It's unfortunately part of the reason we
14 asked the Court to do an order on psychological
15 evaluation, but that's just not what happened.

16 THE COURT: All right.

17 MR. HANSON: Your Honor, some of what he just
18 said that is just the truth doesn't exist. To me,
19 truth exists and that's what I'm trying to get to
20 here where I go into very specific detail where the
21 second batch of records including Ascensus records
22 October 1st, 2023 forward. That doesn't comply with
23 mandatory disclosures. They have to get back to at
24 least April of 2023 and Ascensus was an account I
25 didn't know about. To me, that looks very curious

1 and suspicious with all of the other documents they
2 provided, they provided it back to April of 2023 in
3 compliance. For the Ascensus records, he was very
4 specific that the first set of records that I got
5 just before the hearing only went back to June 1st
6 of 2024. The second set of Ascensus records also,
7 that I got after the hearing, went back from
8 October 1st to 2023.

9 In my email here on page 3, I guess the third
10 paragraph down on the second line, there it says, "I
11 have real concerns about using a delay you created
12 to avoid producing the required documents going back
13 to April of 2023." It makes it obvious and simple
14 the information is there, but that's the issue. It
15 wasn't outside of mandatory disclosures. It was a
16 clear attempt to say -- to delay things. Make me
17 thinks that stuff from April 1st of 2023 to end of
18 September 2023 would be what I'm looking for.
19 Ultimately, there was nothing there, but still the
20 shenanigans with hiding things. Why not? Discovery
21 is supposed to be broad in family law cases. Is
22 that right, Your Honor?

23 THE COURT: It is, but not when you have a post
24 and prenuptial agreement.

25 MR. HANSON: If there's no disclosure -- but

1 you're treating it as though there were disclosures.

2 THE COURT: No, I'm not. I don't know.

3 MR. HANSON: Where is the evidence that says
4 you need anything more than a lack of disclosure for
5 discovery to go forward?

6 THE COURT: I just need to set a proper hearing
7 and have you both present your case.

8 MR. HANSON: That's been a fact for a long
9 time. That I've presented.

10 THE COURT: We haven't had a hearing on it.

11 MR. HANSON: Your Honor, will the Court ask
12 Mr. Davis about -- you can go through the email.
13 The email lists things like hey, this is what
14 happened? Can you provide some explanation or just
15 another part of the pattern of unethical behavior to
16 conceal documents? And it would be very simple if
17 this stuff isn't all true to say hey, Judge, he's
18 saying things that aren't true here. He hasn't said
19 that. He knows they're true. His response in the
20 order to show cause, I believe it's paragraph 6
21 especially says, don't let her tell me the truth
22 anymore. Let her hide from the truth, Judge. The
23 second order said he can't tell me the truth and or
24 ask for my impression of it.

25 THE COURT: It is paragraph 6 says he would

1 like that you no longer make allegations against him
2 and demand response or explanation or legal advice.

3 MR. HANSON: Your Honor, please look at the
4 correspondence.

5 THE COURT: I'm going to make my ruling right
6 now. I already made my ruling on how we're going to
7 keep the communications between the three of us,
8 which is going to be great. And right now as far as
9 the communications between the two of you, I'm going
10 to limit the communications that they're going to be
11 via email in writing and I'm going to reserve on
12 whether I limit anything further and that will give
13 either of you the ability to file a motion at a
14 later juncture if things get out of hand.

15 MR. HANSON: Can he provide --

16 THE COURT: One at a time for the court
17 reporter. Right now I'm going to limit that your
18 communications are in writing via email, which no
19 one has to return a phone call, and if there's any
20 further limitation, I'm going to reserve on that and
21 either of you are free to file a motion at a later
22 date if it becomes a problem.

23 MR. HANSON: Your Honor, just so I'm clear --

24 THE COURT: Do you realize you just won this
25 hearing?

1 MR. HANSON: I just don't understand any email
2 I sent that's inappropriate.

3 THE COURT: I didn't limit them.

4 MR. HANSON: Your Honor, it's a situation where
5 it allows Mr. Davis to continue hiding.

6 THE COURT: I'm ruling in your favor.

7 MR. HANSON: I understand, Your Honor, but --

8 THE COURT: I'm not limiting them.

9 MR. HANSON: I won't say anything more, Your
10 Honor.

11 THE COURT: All right. So I'm not limiting
12 them. I'm going to go back to my office right now
13 and print your motion or your request for Dee Dee to
14 put in this folder so she can attach them all so I
15 have time to look at them and get them set. I am in
16 a trial all day tomorrow and Thursday and I'll be on
17 conference on Friday. I'll bring your information
18 to the conference with me and when I get a break, I
19 will dictate some emails for Dee Dee to send you to
20 start getting these things set.

21 Mr. Hanson, I'm assuming the first thing of
22 importance to you since you said at our April 4th
23 hearing and today the most important thing to you
24 and the only issue in this case is this discovery
25 issue that you believe. So if you want me to get

1 everything set with respect to discovery first,
2 correct, sir? Is that the most important thing to
3 you?

4 MR. HANSON: Yes, Your Honor.

5 THE COURT: All right. I'm going to go through
6 all your requests. I'm going to try to set
7 everyone's discovery requests ASAP so we can get
8 headed that direction and you cannot feel the
9 frustration that you're feeling.

10 MR. HANSON: Your Honor, it's your
11 position that I can't have a hearing at this point?

12 THE COURT: It has to be filed and noticed,
13 sir. It's called due process.

14 MR. HANSON: Your Honor, what about the one-day
15 notice for the hearing on the motion to withdraw
16 that I wasn't available for.

17 THE COURT: You're right. You're right. You
18 filed a motion for reconsideration. I agreed with
19 you and set it for 15 days.

20 MR. HANSON: It was absolutely meaningless at
21 that point. She wasn't representing me. I didn't
22 have an attorney for those days. I still had an
23 attorney. So it was a hollow attempt.

24 THE COURT: You didn't have an attorney because
25 you wanted me to give you 10 days of notice, which

1 you're required. Actually there's no rule, but if
2 you read between the law, typically I have to give
3 you a 10-day notice. When you filed the motion for
4 reconsideration, I said I need to give you 10 days.
5 I set it out 10 days so you would have the
6 opportunity. That's what you requested if of me.

7 MR. HANSON: You already granted the order and
8 I emailed your staff and said does this mean I can
9 ask Vivian questions during this period. The answer
10 was no. So I still didn't have an attorney.

11 THE COURT: You wouldn't have been able to ask
12 her questions even if I waited 10 days.

13 MR. HANSON: Even if she was still my attorney?
14 You don't think that she has a reasonable obligation
15 to work with me in terms of withdrawing the day that
16 the response to the amended petition -- it's a
17 separate issue, Your Honor. This will not go away.

18 THE COURT: Well, I just hope I get you and
19 your family out of litigation. That's my goal.

20 MR. HANSON: I have no faith in that --

21 THE COURT: That's the No. 1 thing is the
22 kiddos. I want all the kids to be safe. I want
23 parents to heal and move on because I've been
24 through it and it's not fun.

25 MR. HANSON: Your Honor, I haven't said a

1 single thing negative about Sarah. You know how
2 hard's that's been when I have this stress going on?
3 All it is is she's hiding something. It's so hard
4 and the legal system, you know -- I'm going to write
5 on it.

6 THE COURT: Let me tell you, Mr. Hanson. I've
7 got kids in their 20s and I just had to bite my
8 tongue the other day with my 26-year-old. It
9 doesn't stop. My daughter graduated from law
10 school. She didn't hear from her dad until the day
11 she graduated from law school and he wrote her and
12 said can we be in a relationship now. You know how
13 hard it was to bite my tongue? You know what I
14 wrote her back? Honey, I support you in anything
15 you want to do. If you want to have a relationship
16 with your dad, let me know what I can do to help
17 you. After I just did everything to put that kid
18 through law school, emotionally, financially,
19 everything, but I had to bite my tongue because it's
20 the thing you have to do.

21 You're going to be doing this for the rest of
22 your life. I'm sorry. It's just what we have to
23 do. I'm proud of you that you're being the bigger
24 person because it is hard. I'll tell you it's hard.
25 I've been through it and that made me a better

1 lawyer and better judge. I know it's hard when you
2 have a family.

3 MR. HANSON: Add into that an attorney who has
4 made it his legal strategy to violate the rules for
5 an improper purpose and deal with that for a year
6 and bring it up in court and the judge says I'm not
7 going to ask him why he didn't do what I requested.

8 THE COURT: I can't ask him.

9 MR. HANSON: You can't ask him why he didn't
10 comply with your order?

11 THE COURT: It wasn't order.

12 MR. HANSON: What limits your ability to ask
13 him why didn't you comply with my request?

14 THE COURT: If I had issued an order asking him
15 to do it and he didn't do it, I would have asked him
16 why he violated my order.

17 MR. HANSON: Is there any authority that
18 prevents you from asking him a question about why he
19 didn't follow through with the request, which he
20 said he was going to do follow through with in a
21 couple days? Is there any authority that prevents
22 you from asking that?

23 THE COURT: If I wanted it.

24 MR. DAVIS: Mr. Hanson, I had a family
25 emergency and that's why I didn't do it. Are you

1 satisfied?

2 MR. HANSON: For the entire time? For the
3 entire time?

4 MR. DAVIS: It's none of your business. That's
5 my answer.

6 MR. HANSON: Well, then it doesn't satisfy. It
7 looks like you know that there's no substance there
8 and you didn't want to put it in writing. You want
9 to put that on Judge Ayers to try and figure out a
10 way to grant your motion because you don't have an
11 argument. You have silly allegations and anger and
12 fussiness.

13 MR. DAVIS: Apparently Mr. Hanson doesn't
14 understand on a regular basis parties come before
15 the Court and present their case. Court makes a
16 decision. The Court makes the Court's findings.
17 The Court makes the Court's ruling. I think the
18 Court is right. The Court doesn't want me to write
19 the proposed findings.

20 THE COURT: Well, when you didn't write the
21 proposed findings, I think you asked Dee Dee about
22 it and Dee Dee said something. And I said you know
23 what. With the animosity between this case, it's
24 probably better that Mr. Davis do not send me his
25 summary because I'm going to cut and paste and use

1 it and a lot of my own terms, but anything I used
2 from him you would have thought I was siding with
3 him. So when I didn't get a proper response from
4 Mr. Davis, which is unlike Mr. Davis, and Dee Dee
5 said you brought it to her attention, I said you
6 know what. Don't bother with it. It's probably
7 better I draft it from my perspective, So nobody
8 things I'm favoring anybody.

9 MR. HANSON: Once I asked a Court in the
10 pleading to get him to file it and the Court said I
11 don't really need it.

12 THE COURT: You didn't ask --

13 MR. HANSON: The motion --

14 THE COURT: I don't know what you filed.

15 MR. HANSON: Why even file it?

16 THE COURT: What you do is you have to put it
17 in the court file and when you want it set, you have
18 to reach out to my judicial assistant. That is a
19 misnomer. Everyone thinks everything filed I get a
20 copy of it. Neither Dee Dee or I get a copy. The
21 only thing I have to read is reports for any motions
22 for reconsideration and any order -- anything to
23 reopen the case. That's the only thing I get a list
24 on.

25 MR. HANSON: Now that you're aware that he

1 hasn't done anything for almost 10 days or two weeks
2 and then I filed a motion requesting that he do it
3 and the Court said I don't need it.

4 THE COURT: I didn't see it.

5 MR. HANSON: I understand that. Now that you
6 know that, can we have him do?

7 THE COURT: Sure. Raise your right hand,
8 Mr. Davis. Do you swear or affirm that the
9 testimony you're about to give will be the truth, the
10 whole truth, and nothing but the truth?

11 MR. DAVIS: I do.

12 MR. HANSON: I'd like it in writing.

13 WHEREUPON:

14 SCOTT DAVIS,
15 a witness, having been duly sworn to tell the truth, the
16 whole truth, and nothing but the truth, was examined and
17 testified as follows:

18 THE COURT: Can you tell me why you did not
19 respond to Dee Dee as much as you feel comfortable
20 doing?

21 MR. DAVIS: I have an ongoing family emergency
22 regarding my oldest child, who is 17 years old.
23 That has been going on since the Sunday at the
24 conclusion of spring break, which was March 23rd and
25 is still going on to date.

1 THE COURT: And how has that impacted your
2 caseload?

3 MR. DAVIS: I have to spend time every day.
4 First of all, he's not in school right now when he
5 should be in school. Second of all, I have to spend
6 a significant amount of time driving him to places
7 that he would normally drive himself and
8 participating in things that are scheduled during
9 the business day and it has put me significantly
10 behind.

11 THE COURT: In this case and other cases or
12 just this case?

13 MR. DAVIS: This case and other cases. I had
14 to file a motion for extension of time to file an
15 answer and counterpetition this morning. I just
16 asked for 48 hours and I'll have it done. I'll do
17 it tonight, but it's not only this case.

18 MR. HANSON: Your Honor, it seems like the
19 emergency that's even before the hearing and
20 certainly at the time that he said I'll get it in a
21 couple days, the emergency existed. So it doesn't
22 really answer the question.

23 THE COURT: I'm not going to ask him. I would
24 never do that to you.

25 MR. HANSON: Have him do the summary.

1 THE COURT: I don't want a summary.

2 MR. HANSON: Well, I do. Your Honor, it's
3 pretty frustrating that the Court says it wants a
4 summary. I filed to say hey, let's get the summary.
5 The Court, I don't want a summary.

6 THE COURT: Why don't you do a summary?

7 MR. HANSON: I can't. To me there's nothing of
8 substance there. It's like trying to catch air. I
9 don't know what argument is.

10 THE COURT: I'm doing a summary because I took
11 really good notes.

12 MR. HANSON: Your Honor, can you see why it's
13 frustrating to me? I said please do it. The Court
14 said yes, do it. I said yes, do it. The Court said
15 no.

16 THE COURT: No. I asked him for a summary
17 because I needed assistance because I don't have a
18 staff attorney and I knew it was going to take me a
19 lot of weekends to do this. I asked him because I'm
20 assuming he has notes on the questions he was going
21 to ask his client. I was assuming he would go
22 through his notes, give me a summary, and I can take
23 that information and cut and paste it when I do the
24 findings of fact from the hearing. When he didn't
25 do it right away and you complained, I said to Dee

1 Dee you know what. If I look at his summary,
2 Mr. Hanson is probably going to think I'm favoring
3 him. I'll just do it from my perspective as the
4 trier of fact because I have my own notes. You're
5 going to get a summary. It's from me.

6 MR. HANSON: Just for a global look at this, I
7 didn't get to offer any evidence at all. If you
8 enter an order against me, I'm going to think it's
9 pretty bias. I was not allowed to offer evidence or
10 argument. The Court came in and said we're going
11 to do the motions for -- I want to focus on the
12 motion for the Guardian ad Litem. The one thing I
13 really have big concerns about. Why was the Court
14 choosing that? It seems like the testimony was on
15 the motions in general.

16 THE COURT: I said very clearly for the record.
17 I have the case to present to you. Sir, it's going
18 to be very clear on due process. I've done all the
19 research on what I have to do on due process. When
20 I came in, I clearly set out the roadmap. Said
21 Judge Ayers set out the roadmap like she always
22 does. I set out the roadmap. The first thing I'm
23 going to deal with is the children. Chase subpoenas
24 are not a paramount thing when I'm dealing with
25 children. So I said we're going to do the Guardian

1 ad Litem, the motion for psych eval, and as to the
2 temporary motion, what are we going to do for
3 timesharing. Mr. Davis objected, I would say, 10
4 times to the fact that all you kept talking about
5 was discovery. I reminded you at least 10 times,
6 sir, this is about the best interest of the children
7 and at the end of this four-hour hearing, I'm going
8 to rule on the psych eval, the GAL motion, and the
9 timesharing for the children. I reminded you
10 numerous times. Mr. Davis objected numerous times.
11 That's what I'm going to do.

12 I have a brand new case that was just handed
13 down from the Second DCA last week that says as long
14 as I gave you due process and I gave you equal
15 timing, I can make a ruling.

16 MR. HANSON: Equal timing with just the wife
17 testifying. So I don't get to cross-examine her.
18 She testified to two hours.

19 THE COURT: You used your time.

20 MR. HANSON: Your Honor --

21 THE COURT: If you don't like my ruling, you
22 can file a motion for rehearing.

23 MR. HANSON: My argument is that the children
24 are being used as pawns. The discovery is the
25 motive for that. That's part of my argument.

1 THE COURT: Okay. I'll take that into
2 consideration.

3 MR. HANSON: But not let me offer any
4 testimony?

5 THE COURT: I gave you two hours and you chose
6 to talk about the Chase subpoenas the entire time
7 and go through emails about agreeing to discovery
8 and extensions and you were a few days late. And I
9 warned you 10 times at least. Mr. Davis objected at
10 least 10 times. I have to run my courtroom and get
11 these things done efficiently. I will be ruling on
12 the GAL motion, the psych eval, and temporary
13 timesharing requested by Ms. Hanson.

14 MR. HANSON: I think it's shocking that you can
15 say that you have children's best interest at heart
16 and you won't let me present any evidence or
17 argument.

18 THE COURT: You had two hours and you chose --

19 MR. HANSON: Your Honor, even if you're right,
20 you're not going to listen to my argument? You're
21 going to rule on something with the children without
22 letting the party argue.

23 THE COURT: Sir, you had your star witness come
24 and rule against you.

25 MR. HANSON: She didn't rule against me.

1 THE COURT: She testified against you.

2 MR. HANSON: That's what you don't want to
3 hear. Sure.

4 THE COURT: I heard it loud and clear.

5 MR. HANSON: Yeah. I really have questions
6 about your history with Guardian ad Litems too.
7 I'll be looking into further. Were you ever -- I
8 can't ask you a question?

9 THE COURT: This hearing is concluded. Thank
10 you, Ms. Priestley.

11 MR. DAVIS: Thank you for your time, Your
12 Honor.

13 (The court proceeding concluded at 5:35 p.m.)
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1 REPORTER'S CERTIFICATE

2 STATE OF FLORIDA

3 COUNTY OF HILLSBOROUGH

4 I, NIKA M. PRIESTLEY, certify that I was
5 authorized to and did stenographically report the
6 foregoing court proceeding and that the transcript is a
7 true and complete record of my stenographic notes.

8
9 I further certify that I am not a relative,
10 employee, attorney, or counsel of any of the parties,
11 nor am I a relative or employee of any of the parties'
12 attorney or counsel connected with the action, nor am I
13 financially interested in the action.

14
15 DATED this 9th day of May, 2025
16



19 _____
20 NIKA M. PRIESTLEY
21 Stenograph Shorthand Reporter
22 Notary Public, State of Florida
23 Commission No.: HH476019
24 Expires: April 22, 2028
25

1	29:11, 33:19 48 [1] - 55:16 4:34 [1] - 1:10 4th [8] - 7:9, 19:23, 20:5, 25:15, 25:17, 25:19, 31:15, 47:22	26:19, 51:3 added [1] - 28:7 additional [2] - 36:25, 42:2 address [6] - 20:5, 20:8, 25:19, 25:25, 26:8, 41:19 addressed [2] - 4:24, 19:21 addressing [1] - 35:12 adjudicated [1] - 41:22 advice [1] - 46:2 affects [1] - 38:4 affirm [1] - 54:8 age [1] - 27:9 aggressive [1] - 40:4 ago [2] - 14:8, 25:4 agree [2] - 3:22, 31:4 agreed [2] - 41:14, 48:18 agreeing [1] - 59:7 agreement [20] - 9:21, 16:19, 16:21, 18:10, 19:8, 21:10, 21:11, 21:20, 21:23, 21:25, 22:4, 22:14, 22:20, 22:24, 23:9, 24:4, 30:2, 30:7, 30:20, 44:24 agreements [4] - 18:18, 19:6, 29:9, 29:19 ahead [1] - 31:8 AIDED [1] - 1:19 air [1] - 56:8 allegations [8] - 12:16, 13:6, 14:20, 20:16, 29:21, 36:7, 46:1, 52:11 alleging [1] - 37:8 allow [3] - 22:24, 23:15, 24:13 allowed [3] - 26:4, 27:8, 57:9 allowing [3] - 19:18, 27:12, 36:1 allows [2] - 39:18, 47:5 almost [3] - 4:7, 33:22, 54:1 altering [1] - 16:7 amazing [1] - 28:7 amend [1] - 3:7 amended [4] - 3:10, 3:17, 3:23, 49:16 amount [4] - 9:4, 35:9, 41:25, 55:6 AND [1] - 1:1 anger [1] - 52:11	animosity [1] - 52:23 answer [8] - 14:7, 14:9, 17:13, 30:9, 49:9, 52:5, 55:15, 55:22 Answer [1] - 14:10 answers [4] - 14:5, 18:8, 27:20, 33:25 apologize [3] - 4:15, 6:24, 20:3 apparent [1] - 43:7 appeal [3] - 22:2, 24:14, 28:4 appealed [1] - 28:3 appealing [1] - 36:23 APPEARANCES [1] - 2:1 appellate [2] - 24:16, 28:10 apple [1] - 29:15 appropriate [3] - 9:4, 29:24, 38:14 appropriately [1] - 4:23 approve [2] - 29:20 April [16] - 1:9, 7:8, 7:9, 19:22, 19:23, 20:5, 25:15, 25:17, 25:19, 31:15, 43:24, 44:2, 44:13, 44:17, 47:22, 61:21 argue [2] - 30:12, 59:22 argued [1] - 42:6 argument [13] - 30:14, 32:14, 32:15, 32:18, 33:1, 33:7, 52:11, 56:9, 57:10, 58:23, 58:25, 59:17, 59:20 arguments [2] - 32:2, 32:11 ASAP [1] - 48:7 Ascensus [4] - 43:21, 43:24, 44:3, 44:6 aside [10] - 18:22, 19:2, 21:6, 22:23, 23:5, 23:7, 23:13, 23:18, 25:9, 29:18 assets [1] - 21:16 assist [1] - 20:19 assistance [1] - 56:17 assistant [2] - 4:7, 53:18 associated [1] - 20:15 assuming [3] - 47:21, 56:20, 56:21 attach [5] - 5:13, 6:3, 8:12, 11:6, 47:14 attachment [1] - 7:15 attempt [2] - 44:16, 48:23 attempted [1] - 8:7 attempts [3] - 14:21, 17:1, 27:7 attention [2] - 28:9, 53:5 attitude [1] - 40:16 Attorney [1] - 2:5 attorney [15] - 14:25, 15:5, 33:11, 33:14, 40:4, 41:15, 48:22, 48:23, 48:24, 49:10, 49:13, 51:3, 56:18, 61:10, 61:12 attorneys [4] - 11:21, 12:8, 15:23, 27:21 authority [4] - 24:1, 24:8, 51:17, 51:21 authorized [1] - 61:5 available [1] - 48:16 avoid [2] - 27:8, 44:12 award [1] - 42:2 aware [2] - 40:12, 53:25 AYERS [1] - 1:11 Ayers [2] - 52:9, 57:21
2	2023 [7] - 43:22, 43:24, 44:2, 44:8, 44:13, 44:17, 44:18 2024 [3] - 13:20, 24:5, 44:6 2025 [2] - 1:9, 61:15 2028 [1] - 61:21 20s [1] - 50:7 22 [3] - 1:9, 7:14, 61:21 22nd [1] - 14:16 23rd [1] - 54:24 24-DR-001150 [1] - 1:3 24-DR-1150 [1] - 3:3 25th [3] - 13:19, 13:20, 15:10 26-year-old [1] - 50:8 27 [1] - 42:21 28th [1] - 41:15 2:00 [1] - 39:10	5 54 [1] - 2:15 5:35 [1] - 60:13 5:36 [1] - 1:10 6 6 [3] - 5:8, 45:20, 45:25 61 [1] - 2:16 7 7 [3] - 7:2, 8:3, 26:16 7-O [1] - 13:23 70 [1] - 13:21 727-409-5738 [1] - 2:9 8 800 [1] - 1:11 813-251-6222 [1] - 2:4 9 9th [1] - 61:15 A abandoned [1] - 4:24 ability [2] - 46:13, 51:12 able [5] - 5:2, 5:12, 11:1, 11:4, 49:11 absolutely [3] - 19:20, 32:13, 48:20 abundance [1] - 27:6 ACAP [1] - 36:23 access [3] - 16:7, 16:17 account [1] - 43:24 accusations [1] - 11:18 act [1] - 27:12 acted [2] - 27:12, 35:20 action [3] - 36:22, 61:12, 61:13 acts [1] - 37:2 ad [3] - 57:12, 58:1, 60:6 add [4] - 26:15, 26:16, 29:11, 33:19	B backing [1] - 38:18 bad [2] - 23:9, 32:19 balls [1] - 35:22 Bar [5] - 35:3, 36:11, 36:12, 36:22, 41:4 baseball [1] - 35:21 based [3] - 18:17, 21:17, 32:22 basis [6] - 4:8, 10:2, 11:10, 32:20, 38:12, 52:14 batch [3] - 42:11, 42:12, 43:21 bats [1] - 35:22 Bay [1] - 2:3 bear [2] - 35:11, 38:17 becomes [1] - 46:22 begin [1] - 4:1 behavior [1] - 45:15 behind [3] - 14:1, 14:6, 55:10 beneficial [1] - 42:22 best [6] - 18:6, 31:16, 31:18, 32:25, 58:6, 59:15 better [6] - 4:11, 37:18, 50:25, 51:1, 52:24, 53:7 between [10] - 3:11, 3:12, 7:17, 7:21, 11:12, 13:1, 46:7,
3	3 [3] - 2:14, 43:6, 44:9 33602 [1] - 1:12 33634-7418 [1] - 2:8 33679-8667 [1] - 2:4 3934 [1] - 2:8 3rd [4] - 7:8, 19:22, 19:24, 20:2		
4	4-3.4 [1] - 16:5 4/17 [1] - 5:7 4/4 [4] - 7:9, 7:12,		

46:9, 49:2, 52:23 beyond [2] - 15:7, 43:1 bias [1] - 57:9 big [1] - 57:13 bigger [1] - 50:23 binding [1] - 30:23 bit [4] - 3:22, 4:15, 10:25, 12:22 bite [4] - 29:15, 50:7, 50:13, 50:19 blatantly [1] - 43:3 bother [1] - 53:6 Box [1] - 2:3 brand [1] - 58:12 break [3] - 10:22, 47:18, 54:24 bring [3] - 28:9, 47:17, 51:6 broad [1] - 44:21 brought [1] - 53:5 burying [1] - 20:21 business [5] - 37:25, 38:3, 39:2, 52:4, 55:9 BY [1] - 1:14 bye [1] - 33:13	cetera [1] - 12:7 challenge [1] - 30:19 change [4] - 3:9, 18:7, 18:22, 20:12 changed [1] - 40:8 characterize [1] - 43:11 Chase [8] - 14:13, 14:14, 25:9, 25:15, 26:19, 31:20, 57:23, 59:6 child [2] - 12:4, 54:22 children [8] - 17:20, 31:19, 57:23, 57:25, 58:6, 58:9, 58:23, 59:21 children's [1] - 59:15 choosing [1] - 57:14 chose [2] - 59:5, 59:18 Chris [1] - 2:7 CHRISTOPHER [2] - 1:7, 2:7 Circle [1] - 2:8 CIRCUIT [2] - 1:1 civil [3] - 28:1, 28:11 Clarification [1] - 5:8 classes [1] - 27:25 clear [9] - 13:17, 14:24, 17:20, 22:10, 22:11, 44:16, 46:23, 57:18, 60:4 clearly [3] - 14:17, 57:16, 57:20 client [5] - 33:5, 37:6, 42:9, 56:21 closely [1] - 13:11 closes [2] - 34:16, 34:20 CMC [1] - 26:9 comfortable [1] - 54:19 coming [1] - 28:18 COMMENCED [1] - 2:14 commenced [1] - 3:1 Commission [1] - 61:21 communicate [4] - 11:22, 12:2, 12:3, 12:5 communicated [1] - 42:9 communication [2] - 4:16, 13:18 communications [17] - 3:11, 3:12, 4:6, 4:21, 4:22, 7:17, 9:18, 9:20, 11:12, 11:18, 12:8, 13:1, 15:22, 46:7, 46:9,	46:10, 46:18 complained [1] - 56:25 complaint [2] - 20:14, 43:1 complete [3] - 27:5, 40:21, 61:7 completely [2] - 18:5, 35:13 compliance [4] - 5:7, 42:5, 42:12, 44:3 comply [7] - 16:12, 33:8, 34:4, 41:7, 43:22, 51:10, 51:13 computer [1] - 33:17 COMPUTER [1] - 1:19 COMPUTER-AIDED [1] - 1:19 conceal [1] - 45:16 concealing [1] - 16:8 concealment [1] - 16:15 concerned [2] - 12:15, 34:5 concerning [2] - 26:22, 31:7 concerns [3] - 15:19, 44:11, 57:13 concluded [2] - 60:9, 60:13 conclusion [1] - 54:24 conclusions [2] - 13:4, 13:16 concur [3] - 4:13, 21:2, 23:1 concurrent [1] - 18:17 conditions [1] - 20:17 conduct [12] - 16:5, 34:16, 34:17, 34:20, 34:22, 35:12, 35:18, 36:4, 36:5, 36:6, 36:10, 37:15 conference [4] - 25:19, 25:25, 47:17, 47:18 conferences [1] - 27:19 confirmed [1] - 40:11 connected [1] - 61:12 consequences [1] - 27:10 consider [4] - 15:13, 17:24, 18:20, 19:18 consideration [1] - 59:2 considered [1] - 17:22 contentious [1] - 40:14 continue [4] - 9:9, 36:25, 39:13, 47:5	continued [2] - 39:14, 39:19 conversation [5] - 37:19, 40:2, 40:10, 40:16, 40:17 cooperation [1] - 15:12 cooperatively [1] - 15:17 coparent [2] - 14:8, 31:13 copy [5] - 6:11, 6:18, 9:21, 53:20 cordial [2] - 16:25, 17:22 correct [7] - 3:17, 18:14, 19:2, 19:12, 21:8, 25:14, 48:2 correctly [2] - 31:4 correspondence [5] - 13:17, 15:7, 17:24, 25:24, 46:4 counsel [5] - 3:5, 3:14, 21:12, 61:10, 61:12 counterpetition [1] - 55:15 COUNTY [2] - 1:1, 61:3 couple [4] - 25:13, 41:25, 51:21, 55:21 court [11] - 3:1, 3:20, 18:25, 24:16, 28:10, 28:18, 46:16, 51:6, 53:17, 60:13, 61:6 COURT [143] - 1:1, 1:9, 2:14, 3:2, 3:19, 3:25, 4:3, 4:4, 5:1, 6:13, 6:19, 6:21, 6:23, 7:1, 7:5, 7:9, 7:12, 7:17, 7:21, 8:2, 8:21, 9:15, 9:19, 10:12, 10:14, 11:24, 12:10, 12:18, 12:21, 12:24, 13:20, 13:23, 14:10, 14:13, 18:13, 19:4, 19:14, 19:20, 19:23, 19:25, 20:4, 20:24, 21:10, 21:13, 22:21, 23:1, 23:22, 23:24, 24:10, 24:25, 25:8, 25:12, 25:21, 26:2, 26:24, 27:24, 28:16, 28:21, 28:23, 29:1, 29:6, 30:1, 30:5, 30:8, 30:12, 30:17, 32:4, 32:13, 32:21, 34:2, 34:5, 34:9, 34:13, 34:18, 34:21, 35:3, 35:15,	35:19, 37:2, 37:6, 37:11, 37:16, 37:25, 38:2, 38:6, 38:11, 38:20, 38:22, 39:5, 39:9, 40:19, 41:9, 41:12, 41:20, 43:16, 44:23, 45:2, 45:6, 45:10, 45:25, 46:5, 46:16, 46:24, 47:3, 47:6, 47:8, 47:11, 48:5, 48:12, 48:17, 48:24, 49:11, 49:18, 49:21, 50:6, 51:8, 51:11, 51:14, 51:23, 52:20, 53:12, 53:14, 53:16, 54:4, 54:7, 54:18, 55:1, 55:11, 55:23, 56:1, 56:6, 56:10, 56:16, 57:16, 58:19, 58:21, 59:1, 59:5, 59:18, 59:23, 60:1, 60:4, 60:9 Court [54] - 3:2, 3:10, 3:12, 4:5, 4:19, 6:9, 9:20, 11:19, 13:14, 18:9, 20:22, 22:2, 24:6, 24:22, 26:23, 27:4, 27:17, 27:23, 31:25, 32:5, 34:3, 34:4, 34:14, 34:16, 34:19, 35:1, 37:14, 38:1, 38:10, 40:8, 41:6, 41:10, 41:19, 42:1, 42:2, 42:3, 43:14, 45:11, 52:15, 52:16, 52:17, 52:18, 53:9, 53:10, 54:3, 56:3, 56:5, 56:13, 56:14, 57:10, 57:13 Court's [5] - 17:5, 31:25, 41:7, 52:16, 52:17 courtesy [1] - 6:18 courtroom [3] - 3:5, 36:13, 59:10 Courts [1] - 27:11 created [1] - 44:11 cross [2] - 26:24, 58:17 cross-examine [1] - 58:17 curious [2] - 34:3, 43:25 Current [1] - 15:15 current [1] - 18:25 custody [1] - 20:12 cut [2] - 52:25, 56:23
--	---	--	---	---

D dad [2] - 50:10, 50:16 daily [2] - 4:8, 38:12 date [3] - 3:9, 46:22, 54:25 DATED [1] - 61:15 daughter [1] - 50:9 DAVIS [30] - 2:2, 2:15, 3:18, 4:18, 6:12, 6:20, 9:14, 11:14, 12:1, 12:13, 12:20, 12:23, 23:23, 25:7, 32:10, 36:21, 37:23, 41:19, 41:21, 42:18, 43:10, 51:24, 52:4, 52:13, 54:11, 54:14, 54:21, 55:3, 55:13, 60:11 Davis [46] - 3:6, 3:13, 3:16, 4:16, 5:7, 9:18, 11:11, 13:1, 13:7, 13:18, 17:23, 24:13, 26:14, 27:5, 27:12, 27:19, 28:25, 29:2, 31:17, 31:25, 32:8, 32:10, 32:21, 33:1, 33:2, 33:20, 34:24, 37:15, 37:19, 37:20, 38:24, 40:2, 40:10, 40:20, 40:23, 41:7, 41:10, 45:12, 47:5, 52:24, 53:4, 54:8, 58:3, 58:10, 59:9 Davis' [1] - 6:4 Davis's [1] - 16:3 day-to-day [1] - 12:8 days [12] - 41:18, 42:1, 48:19, 48:22, 48:25, 49:4, 49:5, 49:12, 51:21, 54:1, 55:21, 59:8 DCA [1] - 58:13 deal [3] - 40:23, 51:5, 57:23 dealing [1] - 57:24 decide [1] - 29:18 decision [1] - 52:16 declined [1] - 36:22 Dee [52] - 5:11, 5:12, 5:24, 6:3, 6:10, 7:17, 7:18, 7:22, 8:12, 9:15, 9:22, 10:7, 10:17, 11:4, 11:5, 26:4, 32:24, 33:6, 33:8, 47:13, 47:19, 52:21, 52:22, 53:4, 53:20, 54:19, 56:25, 57:1 defending [2] - 24:7,	31:3 defense [1] - 26:11 definitely [2] - 12:13, 22:19 delay [3] - 17:3, 44:11, 44:16 delve [2] - 23:15, 23:16 demand [1] - 46:2 demanding [1] - 13:5 demands [3] - 11:15, 13:5, 18:2 deny [1] - 13:25 denying [3] - 22:18, 23:20, 29:4 Derr [1] - 33:13 despite [1] - 41:15 destroying [1] - 16:8 detail [1] - 43:20 determine [1] - 21:6 dictate [1] - 47:19 different [1] - 35:9 diligent [1] - 16:12 direct [1] - 16:4 direction [1] - 48:8 disagreed [1] - 42:3 discipline [1] - 35:4 disclosure [10] - 21:12, 21:15, 23:10, 30:4, 30:6, 30:11, 30:15, 42:8, 44:25, 45:4 disclosures [6] - 14:12, 16:18, 21:24, 43:23, 44:15, 45:1 discovery [63] - 9:3, 13:9, 14:11, 14:18, 14:22, 15:19, 15:24, 16:11, 16:13, 17:9, 18:8, 18:12, 18:14, 18:15, 18:23, 18:24, 19:5, 19:9, 19:16, 19:19, 21:1, 21:2, 21:4, 21:20, 21:22, 22:1, 22:4, 22:10, 22:15, 22:16, 22:25, 23:4, 23:8, 29:8, 29:16, 29:19, 29:25, 30:19, 30:22, 30:23, 31:6, 31:13, 31:14, 37:8, 41:11, 41:14, 41:24, 41:25, 42:6, 42:19, 42:22, 43:8, 44:20, 45:5, 47:24, 48:1, 48:7, 58:5, 58:24, 59:7 discretion [1] - 12:25 discuss [1] - 31:5 dishonesty [1] - 18:2 disposed [1] - 23:11	dispositive [1] - 10:24 DIVISION [2] - 1:2, 1:3 docket [11] - 5:22, 6:22, 7:3, 8:7, 8:24, 9:23, 11:7, 13:21, 24:20, 25:2, 32:23 Docket [5] - 3:9, 3:16, 3:20, 29:4, 29:5 document [1] - 16:8 documentation [1] - 36:25 documents [6] - 34:12, 35:8, 43:9, 44:1, 44:12, 45:16 done [16] - 11:1, 11:2, 27:1, 27:4, 30:3, 32:22, 33:22, 35:19, 35:24, 36:6, 36:16, 54:1, 55:16, 57:18, 59:11 down [10] - 4:12, 12:22, 15:10, 22:13, 31:9, 31:10, 31:12, 38:18, 44:10, 58:13 draft [2] - 33:9, 53:7 drafting [1] - 36:24 drag [2] - 28:6, 28:18 drive [1] - 55:7 driving [1] - 55:6 due [8] - 24:15, 26:11, 30:24, 38:9, 48:13, 57:18, 57:19, 58:14 duly [1] - 54:15 during [4] - 15:1, 35:10, 49:9, 55:8 E ease [1] - 20:9 easier [2] - 7:12, 8:9 easiest [1] - 5:24 easily [1] - 9:8 East [2] - 1:11, 2:8 easy [1] - 8:3 Eden [1] - 2:8 efficient [1] - 34:25 efficiently [2] - 14:17, 59:11 effort [2] - 16:12, 20:18 eight [2] - 9:1, 9:6 either [4] - 33:23, 38:10, 46:13, 46:21 email [20] - 8:1, 10:6, 12:14, 13:3, 13:24, 13:25, 15:7, 15:16, 15:18, 17:24, 17:25, 25:24, 26:4, 43:4, 44:9, 45:12, 45:13, 46:11, 46:18, 47:1	emailed [1] - 49:8 emails [8] - 10:8, 16:25, 18:2, 26:3, 35:21, 36:1, 47:19, 59:7 emergency [7] - 24:18, 24:23, 39:10, 51:25, 54:21, 55:19, 55:21 emotionally [1] - 50:18 employee [2] - 61:10, 61:11 end [5] - 16:22, 20:7, 20:10, 44:17, 58:7 ending [1] - 32:19 enter [1] - 57:8 entered [3] - 4:19, 19:11, 23:9 entire [6] - 15:4, 16:3, 31:20, 52:2, 52:3, 59:6 entitled [9] - 18:16, 19:16, 21:2, 21:4, 21:16, 23:7, 29:19, 42:4, 43:5 equal [2] - 58:14, 58:16 especially [2] - 32:25, 45:21 ESQ [2] - 2:2, 2:7 essentially [2] - 4:24, 27:21 et [1] - 12:7 eval [3] - 58:1, 58:8, 59:12 evaluation [1] - 43:15 Eventual [1] - 43:7 evidence [15] - 13:15, 16:7, 16:16, 17:21, 18:1, 18:3, 22:11, 27:6, 27:7, 30:16, 45:3, 57:7, 57:9, 59:16 evidentiary [2] - 16:9, 23:13 exact [1] - 7:24 exactly [3] - 6:16, 7:19, 8:10 examine [1] - 58:17 examined [1] - 54:16 example [4] - 13:3, 15:20, 32:8, 39:7 examples [1] - 13:13 exchange [1] - 22:15 exhibits [1] - 12:7 exist [1] - 43:18 existed [1] - 55:21 exists [1] - 43:19 expect [1] - 32:6	expedition [1] - 31:1 expeditious [1] - 24:23 Expires [1] - 61:21 explain [2] - 11:15, 13:6 explained [1] - 15:1 explains [2] - 15:18, 25:24 explanation [8] - 17:3, 17:5, 17:6, 17:8, 40:5, 40:9, 45:14, 46:2 extension [1] - 55:14 extensions [1] - 59:8 extra [1] - 42:13 eyes [2] - 34:16, 34:20 F fabulous [1] - 33:11 fact [7] - 5:24, 17:25, 38:23, 45:8, 56:24, 57:4, 58:4 facts [2] - 35:13, 35:14 failed [1] - 41:7 failure [1] - 16:12 fair [1] - 34:24 faith [3] - 14:2, 23:9, 49:20 false [2] - 12:15, 13:6 families [1] - 27:11 FAMILY [1] - 1:2 family [8] - 24:2, 28:17, 34:15, 44:21, 49:19, 51:2, 51:24, 54:21 Family [1] - 2:3 far [4] - 9:2, 9:19, 11:3, 46:8 fare [2] - 24:7, 27:7 faster [1] - 32:22 father [1] - 20:13 favor [4] - 29:1, 32:8, 33:1, 47:6 favoring [2] - 53:8, 57:2 favorite [1] - 27:25 fees [2] - 42:2, 42:4 felt [1] - 4:23 few [2] - 18:19, 59:8 field [1] - 35:21 fighting [1] - 22:13 figure [3] - 8:8, 10:12, 52:9 file [26] - 6:10, 6:17, 9:21, 10:9, 11:4, 11:8, 18:3, 23:5, 24:14, 24:22, 28:10, 29:13, 30:13, 30:20,
--	---	--	---	--

30:24, 36:9, 38:8, 46:13, 46:21, 53:10, 53:15, 53:17, 55:14, 58:22 filed [34] - 3:14, 3:21, 4:20, 5:7, 5:15, 13:2, 14:16, 14:24, 15:3, 17:18, 17:25, 23:4, 23:6, 23:12, 24:3, 24:19, 24:20, 24:21, 25:4, 25:8, 25:12, 26:15, 34:21, 36:21, 37:7, 40:7, 48:12, 48:18, 49:3, 53:14, 53:19, 54:2, 56:4 files [2] - 15:6, 25:21 filing [3] - 5:10, 10:10, 15:22 finally [1] - 18:21 financial [2] - 15:25, 25:5 financially [2] - 50:18, 61:13 findings [4] - 52:16, 52:19, 52:21, 56:24 first [11] - 13:18, 15:9, 15:14, 39:12, 39:17, 43:4, 44:4, 47:21, 48:1, 55:4, 57:22 fishing [1] - 31:1 five [1] - 28:4 FLORIDA [2] - 1:1, 61:2 Florida [10] - 1:12, 1:16, 2:4, 2:8, 35:3, 36:11, 36:12, 36:22, 41:4, 61:20 flowers [1] - 33:12 focus [1] - 57:11 folder [3] - 9:24, 11:9, 47:14 follow [5] - 28:2, 31:25, 41:15, 51:19, 51:20 follow-ups [1] - 41:15 follows [1] - 54:17 FOR [2] - 1:1, 1:1 foregoing [1] - 61:6 forgot [2] - 6:17, 20:3 formal [1] - 5:10 format [1] - 7:24 forth [2] - 4:8, 36:2 forward [4] - 5:18, 9:16, 43:22, 45:5 four [13] - 8:25, 10:23, 14:24, 15:6, 15:20, 17:3, 17:9, 25:7, 31:15, 35:8, 41:11, 41:17, 58:7 four-hour [2] - 8:25,	58:7 four-month [1] - 17:3 fraud [2] - 23:10, 29:21 free [3] - 6:14, 10:17, 46:21 Friday [1] - 47:17 frivolous [1] - 16:11 front [3] - 18:17, 18:19, 38:12 frustrating [2] - 56:3, 56:13 frustration [1] - 48:9 full [1] - 10:21 Fullerton [2] - 21:18, 21:24 fullerton [1] - 21:18 fun [1] - 49:24 fussiness [1] - 52:12	19:17, 19:21, 19:24, 20:2, 20:7, 21:9, 21:11, 21:14, 22:22, 23:19, 23:25, 24:18, 25:5, 25:11, 25:18, 25:23, 26:21, 27:3, 28:15, 28:20, 28:22, 28:24, 29:3, 29:23, 30:4, 30:6, 30:10, 30:13, 31:24, 32:5, 32:12, 32:14, 33:24, 34:3, 34:8, 34:11, 34:14, 34:19, 34:23, 35:5, 35:17, 36:19, 36:23, 37:4, 37:7, 37:12, 37:24, 38:1, 38:4, 38:7, 38:19, 38:21, 39:3, 39:8, 39:25, 41:5, 41:10, 41:14, 42:17, 43:3, 43:17, 44:25, 45:3, 45:8, 45:11, 46:3, 46:15, 46:23, 47:1, 47:4, 47:7, 47:9, 48:4, 48:10, 48:14, 48:20, 49:7, 49:13, 49:20, 49:25, 51:3, 51:9, 51:12, 51:17, 52:2, 52:6, 53:9, 53:13, 53:15, 53:25, 54:5, 54:12, 55:18, 55:25, 56:2, 56:7, 56:12, 57:6, 58:16, 58:20, 58:23, 59:3, 59:14, 59:19, 59:25, 60:2, 60:5 Hanson [42] - 2:7, 3:3, 3:6, 3:19, 3:21, 4:9, 4:21, 5:14, 5:25, 6:14, 8:16, 9:11, 9:24, 11:13, 11:17, 12:14, 12:19, 12:25, 15:14, 15:22, 16:17, 16:22, 20:12, 24:12, 26:6, 29:6, 29:21, 30:18, 32:2, 32:17, 36:4, 36:21, 38:22, 39:22, 41:22, 47:21, 50:6, 51:24, 52:13, 57:2, 59:13 Hanson's [2] - 3:5, 43:11 happy [1] - 33:21 hard [8] - 10:20, 17:16, 17:17, 50:3, 50:13, 50:24, 51:1 hard's [1] - 50:2 harder [1] - 10:25 hardly [2] - 42:16 Harris [1] - 33:13	harsher [1] - 33:4 head [2] - 19:24, 26:7 headed [1] - 48:8 heal [1] - 49:23 hear [8] - 4:2, 6:5, 12:18, 19:1, 26:17, 32:9, 50:10, 60:3 heard [6] - 5:17, 5:22, 6:1, 23:14, 26:9, 60:4 hearing [50] - 3:13, 5:2, 5:19, 8:15, 9:1, 9:10, 12:6, 15:1, 20:7, 21:1, 22:6, 22:21, 22:23, 22:25, 23:2, 23:13, 24:11, 24:15, 24:19, 24:24, 25:22, 26:13, 28:13, 31:19, 33:19, 35:10, 37:11, 37:12, 37:13, 39:10, 39:14, 41:18, 42:1, 42:11, 42:12, 42:13, 42:21, 44:5, 44:7, 45:6, 45:10, 46:25, 47:23, 48:11, 48:15, 55:19, 56:24, 58:7, 60:9 hearings [7] - 7:23, 9:18, 11:5, 17:7, 26:8, 31:10, 42:19 heart [1] - 59:15 heated [1] - 11:17 heavy [1] - 32:22 heck [1] - 36:14 help [8] - 27:15, 27:16, 27:17, 28:17, 40:8, 40:11, 40:17, 50:16 helpful [1] - 5:11 helping [2] - 33:15, 34:15 HH476019 [1] - 61:21 hide [1] - 45:22 hiding [4] - 22:12, 44:20, 47:5, 50:3 HILLSBOROUGH [2] - 1:1, 61:3 himself [2] - 3:7, 55:7 hinted [1] - 29:12 hire [1] - 40:3 history [1] - 60:6 Hodz [10] - 15:3, 37:21, 38:15, 38:18, 38:24, 39:23, 40:1, 40:14, 42:7, 43:1 Hold [2] - 26:24, 28:16 hold [2] - 28:16, 43:5 holding [1] - 6:6 hollow [1] - 48:23 hone [2] - 9:2, 9:7 honest [2] - 16:22,	35:24 honestly [1] - 41:24 honey [1] - 50:14 Honor [59] - 3:18, 3:24, 4:3, 6:15, 7:15, 10:9, 13:2, 14:2, 14:23, 15:6, 16:15, 17:14, 18:6, 19:3, 19:17, 22:22, 23:19, 23:25, 24:9, 25:23, 26:21, 27:3, 28:15, 28:25, 29:3, 29:23, 31:24, 33:24, 34:8, 34:23, 35:5, 37:4, 37:7, 37:13, 37:24, 38:7, 39:8, 41:5, 42:15, 43:3, 43:17, 44:22, 45:11, 46:3, 46:23, 47:4, 47:7, 47:10, 48:4, 48:10, 48:14, 49:17, 49:25, 55:18, 56:2, 56:12, 58:20, 59:19, 60:12 HONORABLE [1] - 1:11 hope [4] - 15:12, 18:8, 42:18, 49:18 hopefully [2] - 8:4, 11:9 hoping [2] - 15:15, 20:22 horrible [3] - 18:1, 36:7, 39:23 horrifying [1] - 27:10 hour [2] - 8:25, 58:7 hours [6] - 10:23, 31:15, 55:16, 58:18, 59:5, 59:18 huge [1] - 29:10 Hunt [1] - 33:13 hurry [1] - 5:16 Husband's [1] - 5:8 husband's [1] - 5:20
	G gain [1] - 42:18 GAL [2] - 58:8, 59:12 general [1] - 57:15 generally [1] - 35:12 global [1] - 57:6 goal [2] - 34:23, 49:19 good-bye [1] - 33:13 graduated [2] - 50:9, 50:11 grant [2] - 42:3, 52:10 granted [1] - 49:7 great [1] - 46:8 grievance [1] - 36:21 group [1] - 10:15 guarantee [1] - 25:2 Guardian [3] - 57:12, 57:25, 60:6 guess [3] - 3:25, 5:3, 44:9 guys [2] - 8:13, 28:9			
	H half [4] - 4:18, 10:19, 10:20, 15:11 hand [2] - 46:14, 54:7 handed [1] - 58:12 handled [1] - 35:1 hands [3] - 8:10, 20:21, 28:14 HANSON [131] - 1:4, 1:7, 2:7, 3:24, 6:15, 6:22, 6:25, 7:4, 7:7, 7:11, 7:15, 7:19, 7:23, 8:18, 9:17, 10:9, 10:13, 13:2, 13:21, 13:24, 14:11, 14:14, 19:3, 19:13,			
			I idea [1] - 32:15 ignore [1] - 35:14 imagine [3] - 21:4, 21:7, 27:10 impacted [1] - 55:1 importance [1] - 47:22 important [7] - 14:1, 28:5, 31:12, 31:21, 31:22, 47:23, 48:2 impossible [2] - 13:12, 27:18 impression [1] - 45:24 improper [1] - 51:5 IN [2] - 1:1, 1:1	

inappropriate [2] - 36:3, 47:2 inappropriately [1] - 35:20 included [1] - 7:25 including [1] - 43:21 inconsistent [2] - 18:5, 35:13 incorporate [1] - 33:21 incredible [1] - 20:13 incredibly [1] - 17:22 indication [1] - 36:17 information [6] - 14:15, 15:25, 17:12, 44:14, 47:17, 56:23 instead [1] - 35:11 instructions [1] - 32:1 intentionally [2] - 34:16, 34:19 interest [3] - 31:18, 58:6, 59:15 interested [3] - 34:14, 34:15, 61:13 intimidated [1] - 38:25 investigate [1] - 21:16 involved [1] - 21:12 issue [20] - 3:21, 4:24, 12:2, 13:8, 13:9, 15:21, 15:24, 17:4, 17:10, 20:20, 22:2, 26:2, 26:3, 33:10, 35:16, 41:16, 44:14, 47:24, 47:25, 49:17 issued [4] - 23:20, 24:13, 26:19, 51:14 issues [4] - 13:10, 14:1, 20:9, 20:11	K keep [2] - 28:18, 46:7 keeping [2] - 5:5, 17:4 KELLY [1] - 1:11 kept [1] - 58:4 kid [1] - 50:17 kiddos [1] - 49:22 kids [8] - 17:19, 20:13, 20:15, 31:16, 31:22, 34:25, 49:22, 50:7 kind [2] - 5:3, 8:5 knowing [1] - 19:11 knows [1] - 45:19 L lack [3] - 27:5, 37:18, 45:4 laid [1] - 14:17 language [2] - 21:19, 22:7 last [4] - 4:12, 5:4, 6:24, 58:13 late [5] - 15:20, 17:9, 41:11, 41:23, 59:8 latest [1] - 22:17 LAW [1] - 1:2 law [12] - 21:14, 21:17, 24:7, 27:7, 28:5, 29:23, 41:1, 44:21, 49:2, 50:9, 50:11, 50:18 Law [1] - 2:3 lawyer [9] - 16:6, 27:16, 34:18, 35:17, 39:11, 39:15, 40:25, 41:2, 51:1 lawyers [6] - 27:17, 35:4, 37:18, 38:2, 38:12, 38:14 lead [1] - 30:16 least [7] - 10:2, 16:17, 27:25, 43:24, 58:5, 59:9, 59:10 leaving [1] - 12:24 lecture [2] - 35:23, 35:25 legal [4] - 30:8, 46:2, 50:4, 51:4 legally [2] - 16:13, 18:16 legitimate [1] - 11:20 less [1] - 12:20 letting [1] - 59:22 lied [1] - 36:15 lies [1] - 36:14 life [1] - 50:22 lighten [1] - 4:14 limit [11] - 3:11, 3:12,	4:21, 10:4, 13:15, 19:7, 19:9, 46:10, 46:12, 46:17, 47:3 limitation [1] - 46:20 limitations [1] - 12:11 limited [2] - 11:14, 21:20 limiting [3] - 21:22, 47:8, 47:11 limits [1] - 51:12 line [2] - 15:10, 44:10 list [11] - 6:2, 6:3, 8:15, 10:20, 10:21, 26:16, 26:20, 29:4, 38:13, 38:16, 53:23 listen [1] - 59:20 lists [1] - 45:13 Item [2] - 57:12, 58:1 Items [1] - 60:6 literally [1] - 24:18 litigant [1] - 38:5 litigate [1] - 39:15 litigating [1] - 33:5 litigation [2] - 22:13, 49:19 live [1] - 14:7 logical [1] - 16:23 logically [1] - 22:11 look [15] - 6:19, 6:21, 8:14, 13:11, 13:16, 13:22, 14:23, 15:9, 17:21, 17:24, 36:9, 46:3, 47:15, 57:1, 57:6 looked [1] - 6:23 looking [4] - 8:19, 25:2, 44:18, 60:7 looks [5] - 7:21, 16:21, 43:6, 43:25, 52:7 losing [1] - 15:5 lost [1] - 33:14 loud [2] - 4:5, 60:4 M ma'am [4] - 6:12, 9:14, 12:23, 37:23 mad [1] - 42:24 Madam [1] - 3:2 major [1] - 38:9 male [1] - 40:4 manage [1] - 10:25 management [3] - 25:19, 25:25, 26:7 mandatory [4] - 14:11, 42:8, 43:23, 44:15 March [1] - 54:24 marital [1] - 32:17 marriage [1] - 32:19 material [1] - 16:9	matter [3] - 10:15, 15:21, 27:3 mean [2] - 10:5, 49:8 meaningful [1] - 22:23 meaningless [1] - 48:20 Mediation [1] - 2:3 medical [1] - 20:19 mentioned [1] - 4:17 mercy [1] - 38:15 mind [3] - 18:7, 20:2, 33:20 minor [2] - 12:4, 32:17 misconduct [1] - 36:11 misnomer [1] - 53:19 mistake [1] - 28:8 money [3] - 16:23, 22:13, 40:24 month [1] - 17:3 months [12] - 14:16, 15:4, 15:20, 17:9, 17:14, 23:25, 25:1, 25:4, 25:13, 27:9, 35:8, 41:17 months' [1] - 41:11 morning [1] - 55:15 most [8] - 31:7, 31:12, 31:21, 31:22, 33:11, 40:3, 47:23, 48:2 motion [48] - 4:15, 4:18, 4:25, 6:7, 7:3, 8:1, 15:4, 18:9, 19:1, 19:18, 22:19, 22:23, 23:4, 23:6, 23:7, 23:10, 23:12, 24:3, 24:21, 25:3, 25:8, 26:9, 26:10, 29:24, 30:13, 30:20, 30:24, 32:20, 34:21, 36:9, 37:7, 42:4, 46:13, 46:21, 47:13, 48:15, 48:18, 49:3, 52:10, 53:13, 54:2, 55:14, 57:12, 58:1, 58:2, 58:8, 58:22, 59:12 motions [18] - 5:12, 5:25, 7:7, 8:13, 9:1, 9:3, 9:6, 9:22, 10:24, 11:6, 11:8, 14:24, 15:6, 20:16, 28:8, 53:21, 57:11, 57:15 motive [1] - 58:25 move [2] - 24:2, 49:23 moved [2] - 29:18, 39:11 moving [1] - 33:13 MR [155] - 3:18, 3:24, 4:18, 6:12, 6:15, 6:20, 6:22, 6:25, 7:4,	7:7, 7:11, 7:15, 7:19, 7:23, 8:18, 9:14, 9:17, 10:9, 10:13, 11:14, 12:1, 12:13, 12:20, 12:23, 13:2, 13:21, 13:24, 14:11, 14:14, 19:3, 19:13, 19:17, 19:21, 19:24, 20:2, 20:7, 21:9, 21:11, 21:14, 22:22, 23:19, 23:23, 23:25, 24:18, 25:5, 25:7, 25:11, 25:18, 25:23, 26:21, 27:3, 28:15, 28:20, 28:22, 28:24, 29:3, 29:23, 30:4, 30:6, 30:10, 30:13, 31:24, 32:5, 32:10, 32:12, 32:14, 33:24, 34:3, 34:8, 34:11, 34:14, 34:19, 34:23, 35:5, 35:17, 36:19, 36:21, 36:23, 37:4, 37:7, 37:12, 37:23, 37:24, 38:1, 38:4, 38:7, 38:19, 38:21, 39:3, 39:8, 39:25, 41:5, 41:10, 41:14, 41:19, 41:21, 42:17, 42:18, 43:3, 43:10, 43:17, 44:25, 45:3, 45:8, 45:11, 46:3, 46:15, 46:23, 47:1, 47:4, 47:7, 47:9, 48:4, 48:10, 48:14, 48:20, 49:7, 49:13, 49:20, 49:25, 51:3, 51:9, 51:12, 51:17, 51:24, 52:2, 52:4, 52:6, 52:13, 53:9, 53:13, 53:15, 53:25, 54:5, 54:11, 54:12, 54:21, 55:3, 55:13, 55:18, 55:25, 56:2, 56:7, 56:12, 57:6, 58:16, 58:20, 58:23, 59:3, 59:14, 59:19, 59:25, 60:2, 60:5, 60:11 multiple [1] - 41:24 must [1] - 28:13 N names [2] - 38:15, 38:25 necessarily [1] - 38:17 necessary [1] - 29:25 need [23] - 6:1, 8:3, 8:10, 10:18, 11:1, 11:7, 19:14, 21:1,
---	---	---	--	--

23:1, 23:16, 29:13, 30:13, 30:18, 31:5, 33:22, 36:25, 40:3, 45:4, 45:6, 49:4, 53:11, 54:3 needed [2] - 27:1, 56:17 needs [2] - 5:9, 23:18 negative [1] - 50:1 never [4] - 17:5, 20:14, 42:20, 55:24 new [4] - 23:19, 27:14, 28:5, 58:12 nicely [1] - 43:2 night [3] - 6:24, 15:2, 17:4 Nika [1] - 1:15 NIKA [2] - 61:4, 61:19 NO [1] - 1:3 nobody [1] - 53:7 nondisclosure [1] - 22:10 none [5] - 10:1, 37:25, 38:3, 39:2, 52:4 normally [1] - 55:7 Notary [2] - 1:15, 61:20 notes [5] - 56:11, 56:20, 56:22, 57:4, 61:7 nothing [10] - 21:22, 21:23, 22:9, 40:25, 41:3, 41:17, 44:19, 54:10, 54:16, 56:7 notice [8] - 24:17, 28:12, 30:18, 30:25, 42:5, 48:15, 48:25, 49:3 noticed [5] - 7:8, 24:14, 25:16, 26:10, 48:12 November [3] - 13:19, 13:20, 15:10 number [2] - 5:23, 7:3 numbers [1] - 9:23 numerous [5] - 4:6, 17:6, 17:7, 58:10	25:14, 26:17, 31:8 objective [2] - 14:17, 16:2 objectives [1] - 15:15 obligation [2] - 17:10, 49:14 obstruct [1] - 14:21 obstructing [1] - 16:6 obstruction [2] - 13:9, 14:4 obvious [1] - 44:13 occasions [1] - 27:19 occurred [1] - 13:12 October [2] - 43:22, 44:8 OF [3] - 1:1, 61:2, 61:3 offer [3] - 57:7, 57:9, 59:3 offered [2] - 20:18, 22:14 offering [1] - 13:15 office [4] - 11:12, 12:21, 33:12, 47:12 often [2] - 11:22, 12:18 old [1] - 54:22 oldest [1] - 54:22 once [6] - 4:13, 10:15, 19:15, 29:14, 30:14, 53:9 one [27] - 4:10, 4:13, 4:17, 5:21, 6:25, 8:21, 10:4, 10:5, 10:6, 11:4, 14:3, 17:25, 19:10, 21:18, 21:19, 22:19, 24:5, 27:25, 28:4, 29:18, 32:9, 42:11, 46:16, 46:19, 48:14, 57:12 one-day [1] - 48:14 ongoing [1] - 54:21 opportunity [3] - 15:16, 19:19, 49:6 opposing [4] - 11:21, 12:8, 16:14, 35:6 order [39] - 3:4, 3:8, 3:10, 3:13, 3:15, 3:20, 4:1, 4:5, 4:14, 4:19, 4:23, 5:4, 7:25, 9:10, 11:3, 18:25, 20:25, 21:5, 22:18, 23:2, 23:3, 23:20, 29:4, 29:25, 30:23, 33:7, 33:9, 33:22, 36:14, 43:14, 45:20, 45:23, 49:7, 51:10, 51:11, 51:14, 51:16, 53:22, 57:8 Order [1] - 5:9 orders [1] - 19:4	ore [1] - 26:14 original [1] - 3:15 otherwise [1] - 27:1 outside [4] - 42:7, 42:10, 42:14, 44:15 outstanding [1] - 14:15 overdue [1] - 43:8 own [2] - 53:1, 57:4	57:3 petition [1] - 49:16 Petitioner [2] - 1:5, 2:5 phone [3] - 34:6, 34:10, 46:19 piecemeal [1] - 8:25 place [2] - 18:25, 30:2 places [1] - 55:6 placing [1] - 20:20 plaintiff [1] - 4:22 planned [1] - 10:1 pleading [2] - 38:9, 53:10 pleadings [1] - 17:7 point [2] - 48:11, 48:21 position [4] - 16:3, 27:15, 33:2, 48:11 possible [2] - 22:6, 33:8 post [9] - 19:8, 21:6, 21:9, 23:5, 23:7, 23:18, 25:3, 25:9, 44:23 post-judgment [1] - 19:8 postmarital [11] - 16:19, 18:10, 21:11, 21:20, 21:22, 21:25, 22:4, 22:14, 22:20, 22:24, 30:7 postnup [1] - 30:3 postnuptial [4] - 16:20, 18:22, 24:3, 30:20 posture [2] - 5:3, 29:15 potential [2] - 12:5, 16:9 practice [1] - 27:8 prayed [1] - 14:6 prefer [1] - 6:14 prejudging [1] - 21:5 prejudgment [1] - 19:8 prenup [1] - 30:2 prenuptial [1] - 44:24 preparation [1] - 4:25 prepare [1] - 26:11 prepared [1] - 4:18 present [5] - 3:4, 45:7, 52:15, 57:17, 59:16 presented [1] - 45:9 pretrial [1] - 16:10 pretty [4] - 11:17, 25:1, 56:3, 57:9 prevails [1] - 22:5 prevents [2] - 51:18, 51:21	Priestley [3] - 1:15, 4:2, 60:10 PRIESTLEY [2] - 61:4, 61:19 print [8] - 5:24, 6:5, 7:13, 8:4, 9:22, 11:6, 11:8, 47:13 printed [1] - 8:5 prisoners [1] - 38:25 Pro [1] - 2:10 problem [3] - 27:18, 40:11, 46:22 procedural [1] - 29:22 procedure [4] - 16:11, 28:1, 28:2, 28:11 PROCEEDING [2] - 1:9, 2:14 proceeding [3] - 3:1, 60:13, 61:6 proceedings [1] - 36:16 process [10] - 24:15, 26:11, 30:25, 36:24, 37:1, 37:3, 48:13, 57:18, 57:19, 58:14 produce [1] - 41:14 Produce [1] - 14:15 producing [1] - 44:12 professional [3] - 16:5, 16:25, 17:23 prohibited [1] - 22:8 prohibits [2] - 16:5, 22:9 prolong [1] - 14:20 promise [1] - 33:3 proper [4] - 16:13, 23:10, 45:6, 53:3 properly [1] - 26:10 propose [1] - 12:11 proposed [2] - 52:19, 52:21 proposing [1] - 12:25 proud [1] - 50:23 prove [3] - 23:8, 23:17, 29:20 provide [7] - 6:3, 6:10, 16:1, 40:9, 41:8, 45:14, 46:15 provided [4] - 16:18, 41:25, 44:2 provides [1] - 15:16 providing [2] - 17:8, 41:11 psych [3] - 58:1, 58:8, 59:12 psychological [2] - 20:17, 43:14 Public [2] - 1:15, 61:20 pull [1] - 5:12
P				
P.A [1] - 2:3 p.m [3] - 1:10, 60:13 P.O [1] - 2:3 page [4] - 5:22, 13:8, 43:6, 44:9 PAGE [1] - 2:13 pages [1] - 7:14 paid [2] - 39:17, 39:20 paragraph [11] - 5:8, 7:2, 8:2, 15:9, 15:14, 26:16, 43:5, 43:7, 44:10, 45:20, 45:25 paralegal [1] - 42:8 paramount [1] - 57:24 parents [1] - 49:23 part [4] - 16:10, 43:13, 45:15, 58:25 participating [1] - 55:8 parties [4] - 3:11, 3:13, 52:14, 61:10 parties' [1] - 61:11 party [6] - 16:14, 21:15, 35:6, 37:5, 42:23, 59:22 party's [1] - 16:6 past [1] - 14:4 paste [2] - 52:25, 56:23 pattern [2] - 17:11, 45:15 pause [1] - 24:25 pawns [2] - 17:20, 58:24 people [3] - 27:12, 27:15, 34:6 per [1] - 11:5 percent [1] - 40:19 perfect [3] - 3:25, 8:3, 8:12 perhaps [2] - 31:24, 41:23 period [1] - 49:9 permitted [2] - 31:2, 37:20 person [2] - 22:6, 50:24 perspective [2] - 53:7,				
O				
object [4] - 26:15, 28:13, 39:5, 39:6 objected [4] - 31:17, 58:3, 58:10, 59:9 objecting [1] - 39:3 objection [10] - 15:1, 15:2, 23:22, 24:11, 25:12, 25:15, 25:21, 25:22, 28:13, 29:17 objections [4] - 6:7,				

purpose [3] - 11:20, 25:24, 51:5 push [1] - 24:7 put [14] - 9:24, 10:5, 11:8, 17:12, 27:23, 30:18, 30:25, 40:7, 47:14, 50:17, 52:8, 52:9, 53:16, 55:9	reduced [1] - 32:2 reference [2] - 5:23, 7:7 referenced [1] - 8:1 refused [1] - 38:7 regarding [1] - 54:22 regular [1] - 52:14 rehearing [2] - 28:8, 58:22 reign [1] - 6:14 reissued [1] - 25:9 relating [2] - 12:4, 12:6 relationship [2] - 50:12, 50:15 relative [2] - 61:9, 61:11 releases [1] - 20:19 relevant [1] - 30:16 remember [3] - 7:13, 7:19, 27:25 reminded [2] - 58:5, 58:9 reminder [1] - 32:24 reopen [1] - 53:23 report [2] - 36:12, 61:5 REPORTED [2] - 1:14, 1:18 reporter [1] - 46:17 REPORTER [1] - 4:3 Reporter [2] - 3:2, 61:20 REPORTER'S [2] - 2:16, 61:1 reports [1] - 53:21 represented [1] - 38:6 representing [2] - 3:6, 48:21 Request [2] - 5:8, 14:14 request [24] - 5:10, 5:16, 5:21, 6:9, 6:10, 7:5, 8:13, 8:19, 9:12, 9:21, 10:4, 10:5, 10:10, 10:11, 11:4, 16:13, 26:25, 34:4, 41:8, 42:13, 47:13, 51:13, 51:19 requested [8] - 5:6, 7:23, 7:25, 8:14, 27:2, 49:6, 51:7, 59:13 requesting [2] - 11:11, 54:2 requests [4] - 10:2, 16:11, 48:6, 48:7 required [4] - 30:6, 30:10, 44:12, 49:1 research [1] - 57:19 reserve [2] - 46:11,	46:20 reset [1] - 15:16 resolution [1] - 15:17 resolve [3] - 14:6, 20:9, 20:11 respect [10] - 3:15, 4:16, 11:3, 11:12, 19:5, 31:18, 34:20, 34:22, 35:6, 48:1 respond [1] - 54:19 Respondent [2] - 1:7, 2:10 response [7] - 3:14, 3:17, 3:19, 45:19, 46:2, 49:16, 53:3 rest [2] - 42:6, 50:21 result [3] - 32:7, 34:24, 34:25 retirement [1] - 42:7 retrace [1] - 8:7 return [2] - 34:6, 46:19 reverse [1] - 24:16 reversed [1] - 28:3 review [3] - 5:13, 10:1, 15:13 rip [1] - 16:20 roadmap [3] - 57:20, 57:21, 57:22 Roc [1] - 2:8 roll [1] - 42:19 Rule [1] - 16:4 rule [11] - 6:8, 16:10, 19:15, 24:12, 39:18, 49:1, 58:8, 59:21, 59:24, 59:25 ruled [1] - 19:6 rules [4] - 28:1, 28:11, 51:4 ruling [10] - 29:7, 29:10, 33:18, 46:5, 46:6, 47:6, 52:17, 58:15, 58:21, 59:11 rulings [1] - 29:11 run [1] - 59:10 running [1] - 41:6	50:11, 50:18, 55:4, 55:5 scope [3] - 42:8, 42:10, 42:14 SCOTT [3] - 2:2, 2:15, 54:14 Scott [1] - 3:5 scott@ davislawtampa.com [1] - 2:5 scratch [1] - 33:9 Se [1] - 2:10 second [8] - 15:11, 24:25, 43:6, 43:21, 44:6, 44:10, 45:23, 55:5 Second [1] - 58:13 section [1] - 15:14 see [10] - 7:13, 8:7, 8:16, 24:5, 36:10, 38:17, 43:4, 43:12, 54:4, 56:12 send [7] - 6:17, 9:21, 10:3, 11:5, 32:10, 47:19, 52:24 sending [3] - 9:12, 15:11, 28:12 sends [1] - 10:17 sense [3] - 16:23, 22:12, 42:20 sent [11] - 4:10, 4:13, 5:4, 13:3, 15:10, 17:25, 33:21, 42:5, 42:10, 43:4, 47:2 separate [2] - 27:20, 49:17 September [1] - 44:18 serious [1] - 16:14 serves [1] - 11:20 set [45] - 4:5, 6:9, 9:4, 11:23, 18:22, 19:1, 21:6, 22:21, 22:23, 23:5, 23:7, 23:12, 23:18, 23:24, 24:17, 24:22, 25:9, 25:13, 25:18, 25:22, 26:9, 28:13, 29:14, 29:17, 29:18, 31:8, 37:11, 37:12, 37:13, 39:11, 39:19, 42:19, 44:4, 44:6, 45:6, 47:15, 47:20, 48:1, 48:6, 48:19, 49:5, 53:17, 57:20, 57:21, 57:22 Set [1] - 9:24 setting [2] - 3:13, 26:8 settle [2] - 11:24, 12:1 seven [1] - 15:4 several [1] - 22:17 shenanigans [1] -	44:20 shocked [1] - 35:1 shocking [5] - 34:7, 37:15, 38:11, 39:1, 59:14 Shorthand [1] - 61:20 show [15] - 3:4, 3:8, 3:10, 3:15, 3:20, 4:1, 4:6, 4:14, 4:19, 4:23, 9:10, 11:3, 24:20, 36:15, 45:20 side [1] - 26:11 siding [1] - 53:2 sign [1] - 20:18 significant [2] - 41:25, 55:6 significantly [1] - 55:9 silly [1] - 52:11 simple [5] - 5:11, 5:21, 13:8, 44:13, 45:16 single [5] - 13:3, 17:4, 33:18, 34:6, 50:1 singular [3] - 15:21, 17:10, 41:16 sit [2] - 28:3, 29:6 sitting [2] - 33:5, 33:17 situation [1] - 47:4 skin [1] - 36:2 slow [1] - 41:17 slowed [1] - 4:12 slowing [1] - 42:19 someone [1] - 27:8 sorry [6] - 6:15, 7:11, 7:20, 15:6, 25:3, 50:22 sound [1] - 31:23 sounds [2] - 9:11, 25:1 speaking [1] - 4:5 specific [4] - 8:19, 21:19, 43:20, 44:4 spend [2] - 55:3, 55:5 spending [1] - 33:19 spent [2] - 31:15, 31:20 spirit [1] - 15:12 spring [1] - 54:24 staff [4] - 33:11, 33:14, 49:8, 56:18 stalling [2] - 42:22, 42:23 stand [1] - 3:16 star [1] - 59:23 start [1] - 47:20 started [3] - 11:15, 20:8, 41:17 STATE [2] - 1:1, 61:2 State [2] - 1:16, 61:20 status [1] - 15:15
Q questions [7] - 33:25, 35:15, 35:17, 49:9, 49:12, 56:20, 60:5 quick [2] - 6:10, 6:19 quickly [1] - 33:7 quit [2] - 37:18, 40:1 quitting [1] - 39:1	R Raise [1] - 54:7 ratify [1] - 30:3 reach [1] - 53:18 reached [2] - 4:10, 15:21 reaction [1] - 37:9 read [6] - 15:18, 26:3, 26:4, 26:5, 49:2, 53:21 reading [1] - 21:17 ready [2] - 5:13, 29:10 real [2] - 6:19, 44:11 reality [1] - 43:12 realize [1] - 46:24 really [13] - 16:24, 19:24, 20:10, 20:12, 26:22, 37:9, 53:11, 55:22, 56:11, 57:13, 60:5 reason [7] - 8:23, 19:9, 22:16, 25:18, 30:15, 41:22, 43:13 reasonable [1] - 49:14 reasonably [1] - 16:12 reasons [1] - 41:24 receive [1] - 31:13 receives [1] - 4:7 recent [1] - 21:19 recently [1] - 4:11 recollection [1] - 26:7 reconsideration [3] - 48:18, 49:4, 53:22 record [3] - 19:25, 57:16, 61:7 records [10] - 20:18, 20:20, 25:6, 40:5, 42:7, 43:21, 44:3, 44:4, 44:6 rectify [1] - 28:10	S safe [2] - 31:23, 49:22 Samarkos [1] - 37:21 sand [1] - 20:22 Sarah [3] - 14:9, 17:17, 50:1 SARAH [1] - 1:4 satisfied [1] - 52:1 satisfy [1] - 52:6 saw [2] - 36:4, 36:5 schedule [1] - 12:3 scheduled [1] - 55:8 school [5] - 50:10,	THE REPORTING FIRM, LLC Scheduling@TheReportingFirm.com	

Stenograph ^[1] - 61:20 stenographic ^[1] - 61:7 STENOGRAPHICAL LY ^[1] - 1:18 stenographically ^[1] - 61:5 still ^[14] - 3:16, 3:22, 4:2, 5:16, 9:17, 22:1, 22:6, 22:21, 37:17, 44:19, 48:22, 49:10, 49:13, 54:25 stipulate ^[1] - 9:11 stipulated ^[2] - 17:9, 35:8 stipulation ^[1] - 15:20 stipulations ^[1] - 12:5 stop ^[1] - 50:9 story ^[1] - 13:17 straightforward ^[1] - 40:6 strategic ^[1] - 43:8 strategy ^[3] - 16:4, 42:16, 51:4 Street ^[1] - 1:11 stress ^[1] - 50:2 stuff ^[5] - 26:4, 27:8, 32:18, 44:17, 45:17 subject ^[2] - 10:15, 24:19 subpoena ^[8] - 23:19, 24:11, 24:13, 24:22, 25:20, 26:18, 28:12, 31:8 subpoenas ^[8] - 14:13, 14:14, 25:10, 25:16, 26:18, 31:21, 57:23, 59:6 subsided ^[1] - 4:9 substance ^[2] - 52:7, 56:8 substantive ^[1] - 29:7 suddenly ^[2] - 15:5, 40:8 suffer ^[1] - 20:16 suffered ^[1] - 27:11 suffering ^[2] - 14:20, 17:13 suggesting ^[1] - 21:23 suggestion ^[2] - 5:18, 12:11 suggests ^[1] - 29:24 summaries ^[1] - 34:1 summarize ^[1] - 32:21 summary ^[17] - 32:1, 32:12, 32:14, 33:6, 41:8, 52:25, 55:25, 56:1, 56:4, 56:5, 56:6, 56:10, 56:16,	56:22, 57:1, 57:5 Sunday ^[1] - 54:23 support ^[2] - 22:11, 50:14 supposed ^[7] - 16:24, 19:21, 20:5, 26:5, 26:18, 40:19, 44:21 suspicious ^[1] - 44:1 swear ^[1] - 54:8 sworn ^[1] - 54:15 system ^[2] - 11:16, 50:4 T Tampa ^[3] - 1:12, 2:4, 2:8 tampa ^[1] - 2:3 tasked ^[1] - 33:17 tear ^[1] - 22:14 teddy ^[2] - 35:11, 38:17 teed ^[2] - 31:3, 31:4 telephone ^[1] - 12:15 temporary ^[2] - 58:2, 59:12 tension ^[1] - 20:10 tenusly ^[1] - 26:14 terms ^[3] - 9:18, 49:15, 53:1 terribly ^[1] - 11:22 testified ^[3] - 54:17, 58:18, 60:1 testify ^[1] - 32:17 testifying ^[1] - 58:17 testimony ^[6] - 32:1, 32:12, 43:11, 54:9, 57:14, 59:4 THE ^[142] - 1:1, 3:2, 3:19, 3:25, 4:3, 4:4, 5:1, 6:13, 6:19, 6:21, 6:23, 7:1, 7:5, 7:9, 7:12, 7:17, 7:21, 8:2, 8:21, 9:15, 9:19, 10:12, 10:14, 11:24, 12:10, 12:18, 12:21, 12:24, 13:20, 13:23, 14:10, 14:13, 18:13, 19:4, 19:14, 19:20, 19:23, 19:25, 20:4, 20:24, 21:10, 21:13, 22:21, 23:1, 23:22, 23:24, 24:10, 24:25, 25:8, 25:12, 25:21, 26:2, 26:24, 27:24, 28:16, 28:21, 28:23, 29:1, 29:6, 30:1, 30:5, 30:8, 30:12, 30:17, 32:4, 32:13, 32:21, 34:2, 34:5,	34:9, 34:13, 34:18, 34:21, 35:3, 35:15, 35:19, 37:2, 37:6, 37:11, 37:16, 37:25, 38:2, 38:6, 38:11, 38:20, 38:22, 39:5, 39:9, 40:19, 41:9, 41:12, 41:20, 43:16, 44:23, 45:2, 45:6, 45:10, 45:25, 46:5, 46:16, 46:24, 47:3, 47:6, 47:8, 47:11, 48:5, 48:12, 48:17, 48:24, 49:11, 49:18, 49:21, 50:6, 51:8, 51:11, 51:14, 51:23, 52:20, 53:12, 53:14, 53:16, 54:4, 54:7, 54:18, 55:1, 55:11, 55:23, 56:1, 56:6, 56:10, 56:16, 57:16, 58:19, 58:21, 59:1, 59:5, 59:18, 59:23, 60:1, 60:4, 60:9 thinking ^[1] - 5:20 thinks ^[2] - 44:17, 53:19 third ^[2] - 15:10, 44:9 THIRTEENTH ^[1] - 1:1 threatened ^[1] - 40:21 three ^[6] - 38:13, 38:14, 39:14, 39:20, 41:17, 46:7 throw ^[1] - 19:10 Thursday ^[4] - 39:11, 39:16, 39:19, 47:16 tied ^[1] - 28:14 tight ^[1] - 8:24 timeline ^[3] - 13:11, 14:23, 15:19 timesharing ^[3] - 58:3, 58:9, 59:13 timing ^[2] - 58:15, 58:16 title ^[1] - 43:7 today ^[5] - 24:15, 29:7, 31:19, 33:12, 47:23 together ^[2] - 9:4, 10:15 tomorrow ^[1] - 47:16 tongue ^[3] - 50:8, 50:13, 50:19 tonight ^[1] - 55:17 took ^[1] - 56:10 top ^[4] - 7:6, 7:7, 26:7, 38:16 total ^[1] - 41:1 towards ^[2] - 15:11, 15:17 town ^[1] - 40:4	track ^[1] - 5:5 trajectory ^[1] - 18:23 transcript ^[1] - 61:6 TRANSCRIPTION ^[1] - 1:19 treating ^[1] - 45:1 trial ^[5] - 11:22, 12:2, 12:6, 39:11, 47:16 trials ^[2] - 10:21, 10:22 trickle ^[6] - 34:11, 41:17, 42:15, 42:16, 42:24, 43:8 trickling ^[1] - 17:11 tried ^[2] - 6:21, 13:7 trier ^[1] - 57:4 trouble ^[1] - 5:5 true ^[4] - 45:17, 45:18, 45:19, 61:7 truth ^[12] - 20:22, 43:18, 43:19, 45:21, 45:22, 45:23, 54:9, 54:10, 54:15, 54:16 truthoverchaos@outlook.com ^[1] - 2:9 try ^[5] - 18:6, 18:21, 20:3, 48:6, 52:9 trying ^[10] - 8:22, 12:1, 14:1, 14:2, 14:19, 15:2, 17:18, 31:15, 43:19, 56:8 Tuesday ^[1] - 1:9 turning ^[1] - 22:12 twice ^[1] - 6:6 Twiggs ^[1] - 1:11 two ^[12] - 13:10, 18:18, 27:19, 29:9, 37:18, 38:2, 46:9, 54:1, 58:18, 59:5, 59:18 type ^[1] - 22:5 typically ^[1] - 49:2 typing ^[1] - 33:18 U ugly ^[2] - 14:19 ultimately ^[1] - 44:19 under ^[3] - 15:14, 21:14, 36:1 unethical ^[1] - 45:15 unfortunately ^[1] - 43:13 unkind ^[1] - 37:2 unlawfully ^[2] - 16:6, 16:7 unless ^[6] - 9:25, 11:6, 11:19, 11:22, 12:1, 12:9	unlike ^[1] - 53:4 unreasonable ^[3] - 13:3, 13:5, 13:14 unrepresented ^[2] - 37:5, 38:5 untrue ^[1] - 43:4 up ^[14] - 4:14, 10:23, 15:2, 16:20, 16:22, 17:4, 22:14, 29:14, 31:4, 40:13, 40:16, 40:20, 51:6 updated ^[1] - 10:10 updates ^[1] - 10:3 ups ^[1] - 41:15 upset ^[2] - 35:25, 37:17 urge ^[1] - 17:23 urgent ^[1] - 12:4 V vacation ^[1] - 9:25 vague ^[1] - 32:17 value ^[1] - 16:9 via ^[2] - 46:11, 46:18 violate ^[1] - 51:4 violated ^[1] - 51:16 violating ^[1] - 19:4 violation ^[1] - 16:4 violations ^[1] - 37:8 vision ^[1] - 36:7 Vivian ^[4] - 38:15, 38:18, 38:24, 49:9 void ^[6] - 18:9, 22:19, 24:3, 25:3, 29:24, 30:14 voluminous ^[1] - 8:8 W wait ^[2] - 22:3, 35:8 waited ^[1] - 49:12 waiting ^[3] - 6:2, 10:20, 10:21 waiving ^[1] - 22:15 wants ^[9] - 11:19, 18:3, 20:12, 27:23, 28:25, 36:19, 41:2, 43:10, 56:3 warned ^[1] - 59:9 week ^[3] - 8:14, 28:19, 58:13 weekends ^[2] - 33:19, 56:19 weekly ^[2] - 10:2, 11:10 weeks ^[1] - 54:1 WHEREUPON ^[2] - 3:1, 54:13 whole ^[6] - 15:18,
--	---	---	--	---

17:11, 19:8, 26:2,
 54:10, 54:16
wife ^[1] - 58:16
wife's ^[1] - 5:21
willing ^[1] - 16:20
wink ^[2] - 18:19, 18:20
withdraw ^[8] - 39:4,
 39:5, 39:6, 39:12,
 39:13, 39:16, 39:21,
 48:15
withdrawing ^[3] -
 14:25, 15:3, 49:15
withdraws ^[1] - 39:13
withdrew ^[1] - 38:10
witness ^[2] - 54:15,
 59:23
WITNESS ^[1] - 2:15
women ^[1] - 38:14
won ^[1] - 46:24
word ^[3] - 33:18,
 37:19, 38:14
works ^[2] - 9:12, 11:16
worry ^[2] - 32:7, 33:9
worth ^[1] - 40:24
wrapped ^[1] - 8:10
write ^[3] - 50:4, 52:18,
 52:20
writing ^[9] - 12:17,
 32:3, 35:25, 40:7,
 40:12, 46:11, 46:18,
 52:8, 54:12
written ^[1] - 31:10
wrote ^[4] - 31:9,
 31:11, 50:11, 50:14

Y

year ^[2] - 14:8, 51:5
years ^[3] - 28:4, 42:21,
 54:22
yesterday ^[2] - 6:20,
 26:15